

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following Background, Established Facts, and Legal Grounds, the Director of the Spanish Agency for Data Protection resolves to adopt this warning resolution.

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BACKGROUND

FIRST: A.A.A. (hereinafter, the claiming party), represented by NOYB (European Centre for Digital Rights, Goldschlagstraße 172/4/3/2, 1140 Vienna, ZVR: 1354838270), filed a complaint with the Spanish Agency for Data Protection on August 21, 2020. The complaint is directed against FREEPIK COMPANY S.L. with NIF B93183366 (hereinafter, the responding party). The grounds for the complaint are as follows:

- Through HTML code embedded in the website ***URL.1, personal data of the claiming party was collected on August 14, 2020, and transferred to the USA via the services of Facebook (including Facebook Connect) contracted by the portal's controller, FREEPIK COMPANY S.L.
- The claiming party states that during their visit to the aforementioned website, which took place while connecting to the Facebook account associated with their email address, the responding party processed their personal data (at least, the IP address and "cookies"), and that some of this data has been transferred to Facebook Inc. in the USA.
- The claiming party argues that the transfer of personal data to the USA by the responding party, whether through Facebook Ireland as an intermediary or directly to Facebook Inc., lacked a legal basis, since the CJEU had invalidated the decision on the "EU-US Privacy Shield" in ruling C-311/18 ("Schrems II"), and the responding party could no longer base the transfer of data to Facebook Inc. in the USA on an adequacy decision under Article 45 of the GDPR.
- The responding party could not base the transfer of data on the standard contractual clauses provided for in Articles 46.2.c and 46.2.d of the GDPR, if the third country of destination did not ensure an adequate level of protection for the personal data transferred under those clauses, according to EU law. The CJEU had explicitly ruled that further transfers to companies covered by Article 50 of the United States Code (USC), such as Facebook, violated the relevant articles of Chapter 5 of the GDPR, since, under this regulation (50 USC § 1881a, or "FISA 702"), they were subject to US intelligence surveillance. As evidenced by the "Snowden Slides" and Facebook's own Transparency Report, this

entity was actively providing personal data to the US government under that provision.

- The responding party and Facebook had continued to rely on the "EU-US Privacy Shield" and the standard data protection clauses for the aforementioned data transfers.

Along with the complaint, the following documents are submitted:

01 – Facebook's Terms for Business Tools

02 – Facebook's Terms for Data Processing

03 – New Facebook Terms for Business Tools

04 – New Facebook Terms for Data Processing

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05 – HAR data from the website visit, including, among others, the following content: three GET requests and one POST request

06 – Conditions of the Privacy Shield

07 - Facebook Inc. and the EU-U.S. Privacy Shield and Swiss-U.S. Privacy Shield

08 - "Snowden Slides"

09 – Representation Agreement

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, dated October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, this Agency communicated this complaint, in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, dated April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that the respondent has its establishment in Spain. The data processing carried out affects individuals in several Member States. In this case, in accordance with the provisions of Article 60 of the GDPR, the authorities of all Member States would act as "concerned supervisory authorities," all of them by virtue of Article 4.22 of the GDPR, since the individuals residing in the territory of these supervisory authorities are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On October 5, 2020, in accordance with Article 64 of the then in force Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

1) By diligence carried out by this Agency on October 25, 2023, it was verified that at the plenary session of the European Data Protection Committee on September 2, 2020, it was decided to create a working group (hereinafter, "TF101") to ensure a coherent approach among European data authorities to manage the 101 complaints from NOYB, which concerned similar issues (the complainant had visited a webpage of a data controller while logged into their Google or Facebook account linked to their email address. And the data controller had embedded...

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Google or Facebook service code, which had transferred their personal data to the United States without having a legal basis for it).

2) In response to the information request made by this Agency, dated December 11, 2020, the respondent party

submitted the following information and statements to this Agency:

1. That "Facebook Connect" was the tool that, at that time, allowed user registration using FACEBOOK credentials instead of creating a specific username and password for the service. That it is currently referred to as "Facebook Login."
2. That the websites of the respondent party had embedded the "Facebook Login" code at that time.
3. That they used "Facebook Login" as a federated identity. That in this way, user data and the password were treated separately, which prevented, in the event of a security breach, the user's password from being accessed by the attacker. Furthermore, it improved the user experience as it allowed for a more streamlined registration process.
4. That the operation of "Facebook Login" was as follows:

"[...]"

In the case of "Facebook login," when the user decides to create their account using their FACEBOOK credentials and clicks the social network button, a call is made to the FACEBOOK API, which opens a window where the user must enter their email and password for their FACEBOOK account to complete the registration process.

In this window, controlled by FACEBOOK—not by FREEPIK—the user is informed that FACEBOOK will share certain data with FREEPIK to carry out the registration process, such as name, photo, and email address. Only when the interested party has given their specific consent to this processing does the process end, and the user account is created on FREEPIK. FREEPIK only receives the username, email address, and photo of the user).

"[...]"

5. That regarding "Facebook Login," depending on the configuration, it allowed obtaining, with prior approval from the interested party, a number of personal data of varying scope, such as, for example, the list of friends on FACEBOOK, the pages that have been "liked," location, or gender. In the case of the respondent party, they only requested and obtained, with prior consent, the minimum possible data: username, email address, and photo.

A screenshot is provided where the name and profile photo are mandatory fields and the email address is an optional field. The following text is also included: "Privacy Policy and Terms of Freepik Company," where the words "Privacy Policy" and "Terms" are hyperlinks.

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6.

Regarding the operation of "Facebook Pixel," its configuration, and the associated consent, it was stated:

"[...]"

In addition to the above, the user can accept or reject the installation of cookies and similar technologies such as pixels. This process is always carried out with the user's granular consent, managed through the CMP of One Trust that FREEPIK uses. The user obtains relevant information in the first and second layers within the CMP itself and in the Cookie Policy of FREEPIK, which we consider to be very comprehensive.

Although we understand that it is not the subject of the complaint, the FACEBOOK marketing pixel is downloaded to the user's device through the CMP of One Trust that FREEPIK uses. When the user accesses the website, they receive relevant information about the processing carried out through cookies and similar technologies in the first and second layers within the CMP itself and in the Cookie Policy of FREEPIK, which we consider to be very comprehensive.

Through the CMP, the interested party can accept or reject in bulk or granularly the different purposes offered (with the cookies associated with them). It is at the moment the user gives their consent and it is stored by One Trust that the FACEBOOK pixel is installed on their device and, therefore, begins to collect information about that user and send it directly to FACEBOOK.

Notwithstanding the above, the user can also block the installation of this type of cookies and tracking tools from their own browser (through the browser's configuration options or by adding dedicated plugins for that purpose).

[...]"

It was also stated:

"The FACEBOOK pixel is a code that functions as an analytical tool and allows us to measure the effectiveness of advertising campaigns by knowing the actions that users take on our website.

Once installed on the website, it collects information about certain interactions of visitors on the website through the configuration of certain "events." An event is a specific type of action taken by a user, which is recorded through the pixel, for example, the action of starting the process of subscribing to a premium subscription on our website.

Once the tool detects that a visitor's activity triggers one of the events, the information about that visitor is recorded and sent to FACEBOOK.

When configuring the tool, FACEBOOK allows two types of configuration: a simpler one, which consists of selecting events from those already predetermined by FACEBOOK, and another more complex one, which allows companies to create their own event to record, which requires computer development skills.

The standard events that FACEBOOK offers by default are the following 18 ***URL.2)

[...]

From the events described above, FREEPIK has only selected those essential for effectively evaluating our campaigns. Specifically, we currently have the following active:

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1. Page View: this event is the only one included as part of the base code of the pixel. This event indicates when someone arrives at the website with the base code of the pixel installed. The rest of the standard events are activated.

2. Content Viewed

3. Add to Cart (currently not used)

4. Registration

5. Purchase (Subscription)

At no time do we obtain any information from the users that FACEBOOK impacts with advertising. The only information we receive is aggregated and statistical, in order to track the performance of the campaigns and confirm billing by FACEBOOK."

And it clarified that:

a.

It was allowed to use 18 events, but the claiming party only used 5 and had not created custom events. A screenshot is provided showing only the 5 events.

b.

That FIL (Facebook Ireland) and its data processors were the ones accessing data through the tool, which was anonymized through aggregation before providing the claiming party with the statistical result of each campaign.

Regarding custom audiences, it stated:

"Based on the information that FACEBOOK provides as a result of the operation of the pixel (aggregated information, in no case do we obtain individualized information about the visitors to the website whose activity has been recorded through the pixel), 'Custom Audiences' are created, that is; 'groups' of FACEBOOK users to whom FREEPIK ads will be shown based on their actions and

behaviors on our website. These audiences can be created based on a specific age range or a specific geographical location, which the FACEBOOK client selects. FACEBOOK does not share information about those users who have been impacted by advertising, only aggregated information is provided. FACEBOOK allows the creation of up to 500 custom audiences per advertising account. At FREEPIK, we do not reach 80 Custom Audiences, some are no longer used, and many are duplicated by market (EN .com), (ES .es), etc...”

Regarding lookalike audiences, it stated:

“Lookalike audiences are a way to reach new people who are more likely to be interested in our company, as they resemble our current customers. That is; we will show our advertising to people similar (or alike) to those who already interact with our company. Likewise, we do not obtain information about these FACEBOOK users who are considered 'similar' to those who have visited our website. We only obtain information in an aggregated and statistical manner.

FACEBOOK offers other configuration alternatives regarding the information that the pixel can collect, so that it can automatically and without the need to configure the code, search for relevant information throughout the web.

In order to have more transparent control over the information shared with FACEBOOK, we do not have the following option activated.”

And it provides a screenshot showing that the option “Automatically track events without code” is disabled.

7.

Regarding the data retention period for the collected data, ***URL.3 stated “[...] Under these conditions, we can retain Event Data for a maximum period of two years. We will keep any audience you have created using this data until you delete it through your account tools [...].”

8.

It stated regarding which countries personal data is processed:

“[...] Regarding FACEBOOK IRELAND, it should be noted that this company has not responded to our request for information about its subcontracting chain (citing 'commercial and security' reasons), so beyond the obvious and manifest processing by FACEBOOK Inc, a U.S. national, we are not aware of the identity or nationality of any of its possible data processors and/or subprocessors.

[...]”

9.

Regarding the legal basis for processing, including the communication of data to FACEBOOK, it stated:

“[...] In the data processing in which FACEBOOK and FREEPIK are joint controllers, FREEPIK obtains the consent of the data subject via the CMP of One Trust (marketing pixel) and FACEBOOK obtains it directly from them, in relation to the 'Login' as explained in the response to question 8a.

FREEPIK integrates the 'Login' Tool of FACEBOOK so that it directly obtains the consent of the data subject for the processing of their personal data,[...].

The data processing carried out by FACEBOOK that exceeds the previously described data processing is regulated in accordance with the various texts that make up Facebook's Privacy Policy[...].”

10.

That, although they understood it was not the subject of the complaint, they also provided information about the FACEBOOK pixel (Facebook Pixel).

11.

That they did not have the option to transfer or not transfer data to the U.S., that FACEBOOK did not allow companies to choose the configuration regarding the location of data and international transfers.

12.

That, from the perspective of the claiming party, only FIL (Facebook Ireland) was the recipient of the information. That FIL communicated, in turn, the data obtained to FACEBOOK INC. and considered it an independent controller or subprocesser, depending on the case.

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13. That the login and marketing pixel were configured to send information about the visitor directly to FACEBOOK. That FACEBOOK provided a summary of the data processed by its products at ***URL.4

14. That the contract governing its relationship with FACEBOOK was located at ***URL.3.

Regarding international transfers:

15. That the international transfer was based on the Appendix on EU data transfer located at ***URL.5. That the model of standard contractual clauses used was that of the Commission in 2010.

16. It provides a document titled "Justification for the use of SCCs as a sufficient instrument" and another with a legal opinion commissioned to DLA Piper.

In the first document, it states, among other issues:

"[...]"

Relevant U.S. legislation.

"[...]"

1.1.1. Executive Order 12333 and Presidential Policy Directive 28

These regulations govern and, more importantly, limit the intelligence action capabilities of U.S. Government agencies outside the U.S. in two main ways.

Purpose of surveillance and national defense

First, both limit the purposes of their surveillance to the protection of national security, prevention of terrorism, and analogous foreign threats. There is no obligation to cooperate.

Second, moreover, EO 12333 does not provide any mechanism to compel U.S. importing companies to cooperate with the Government. That is, based on EO 12333, FREEPIK's providers in the U.S. have no obligation to cooperate with intelligence agencies to provide personal data of European users, which is a fact of great relevance.

1.1.2. Foreign Intelligence Surveillance Act (FISA)

"[...]"

Very specific objective scope: "Foreign Intelligence Information"

"[...]"

From these legal definitions (and from the formal and material requirements set forth in the regulations for specific information requests), it follows that the communications, contents, and metadata that can be intercepted are only those that cross between foreign powers, agents, and installations, and must be materially related to activities linked to terrorism, hostile acts, weapons of mass destruction, clandestine espionage activities, or, more generally but still specifically, to national defense or U.S. foreign affairs activities.

It is necessary to identify the person subject to surveillance

The information request via Section 702 must include some type of identifier or "selector," such as an email address; it cannot be indiscriminate.

It is necessary to justify the request with specific indications related to the investigated person and the information expected to be obtained.

According to FISA, a U.S. intelligence agency is required to provide objective and specific indications, based on facts, to establish the probability that the target person possesses, has access to, or can communicate information related to foreign intelligence to foreign powers or foreign territories.

Moreover, intelligence agencies must also conduct an equally specific and factually justified assessment of the nature of the information expected to be obtained with the requested access.

"[...]"

Ability to appeal the information request.

"[...]"

Modifications after 2016

It is necessary to note that the Schrems II ruling refers to the version of FISA at the time the Adequacy Decision on the Privacy Shield was issued, back in 2016, and does not address subsequent modifications, which are significant.

One of the most relevant is the one that has subsequently restricted the ability to request, based on

Section 702, information based on keywords to be found in the content of communications (which was referred to with requests about "about") so that information can only be requested based on identifiers ("selector") of the person who sends or receives the communication (which is referred to as "from" and/or "to" requests).

1.2. Assessment.

According to the above (and with the attached Legal Opinion from DLA Piper), it is established that the Relevant Regulation, when reviewed and studied, is actually much more limited than one might initially expect.

In the previous sections, we have only enumerated these limits: it is essential to review the definitions of the legal concepts mentioned ("Foreign Intelligence Information," "Foreign Power," "Agent of a Foreign Power," "Electronic Surveillance," "Electronic Communication Service Providers") to have a clear view of the true scope of application of this regulation, which is restricted and is at the opposite end of the data processed and exported by FREEPIK.

[...]

That is to say, surveillance cannot be indiscriminately directed against any target, information, or person, nor can it be dedicated to any purpose.

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In accordance with our methodology, once the objective scope of application of the Relevant Regulation has been established, it is necessary to assess the specific circumstances of the international transfers of FREEPIK.

Firstly, the effective (and objective) possibility that the national authorities of the importing State may require access to the transferred data (to the extent that these are objectively subsumable within the scope of application of the Relevant Regulation).

Secondly, and in relation exclusively to those "selectable flows or data," assess the risk, specifically considering the concurrent circumstances, that such information may be requested by Intelligence Agencies "providing objective and concrete indications, based on facts," that demonstrate that any of the FREEPIK users has possession, access, or the ability to communicate information related to foreign intelligence, and that it is precisely that information that is obtained through the request.

2. Personal data subject to transfer

[...]

2.1.1. Supplied personal data

Different types of interested parties must be distinguished:

Free users or visitors: the user does not need to register or create an account to download a limited number of images or products. Data processed: IP address and other technical identifiers that are processed to prevent fraud, e.g., abusive downloads, beyond those permitted.

Registered free users: the processing only includes very basic personal data, notably the contact email address, username, and photograph.

Premium users: in addition to the usual identifiers mentioned above, this category includes tax address, identity document, and financial data (payment methods) stored and processed solely by payment gateways and providers of such services, for security reasons.

2.1.2. Observed data

FREEPIK stores and analyzes the history of user interactions with the products available on its platform: for example, the history of downloads, favorite collaborators, free and premium downloads, among others of the same nature.

2.1.3. Inferred data

FREEPIK analyzes user interactions on the web along with data such as searches performed, source and destination websites, downloads, or the history of user interactions in aggregate form to try to infer their interests.

FREEPIK analyzes this data to infer the products that generate the most interest, the temporal

moments when there are peaks in demand, the lead time regarding recurring events, which allows it to anticipate and adjust the supply to the demand.

[...]

2.3. Assessment.

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In a general analysis, neither the personal data subject to processing, nor the categories of data subjects, nor the purposes of processing include elements that can be considered sensitive or of special category.

Furthermore, none of the above is remotely linked to the objective and subjective scope of the Relevant Regulation, as has been outlined.

3. FREEPIK as a potential "Relevant Entity"

The conditions required in the Relevant Regulation in the previous sections greatly limit the scope of surveillance (especially, as we have seen, the requirement—as a prerequisite—that intelligence agencies are obliged to justify, based on facts, that not only the targets but also the information that is intended to be obtained with the access request, are subsumable within the objective scope of said Relevant Regulation).

From this perspective, situations can be identified where the exporting organization itself represents an element of interest for Intelligence Agencies, due to its nature, members, or especially, due to its activity.

In this sense, it is necessary to take into account, among others, elements such as:

- Whether the activity of the exporter itself is strategic (interesting, relevant from the perspective of national security and U.S. intelligence services).
- Whether the activity is classified as essential for the normal development of the daily, social, political, or economic activities of the country (so that its forced interruption would impact those, e.g.).
- Whether services are provided with access to data to the Public Administration—at any of its levels—or to the public sector (which would allow access to data from a "Foreign Power").
- Whether personal data of politicians, high-ranking officials of the administration, relevant figures in the private sector, and other individuals of interest are processed (data that would provide information and even the ability to exert pressure on them, as well as on the states or institutions they represent).
- Whether the exporter develops technology with military or dual-use applications (since PPD-28 does not limit espionage actions on this type of technology).

Assessment

FREEPIK is not part of the Public Administration nor does it provide services for it. It is also not subject to any regulations related to the imposition of protective measures due to its activity (such as strategic activities for national security, activities of general interest, essential or particularly relevant activities, management or maintenance of critical or strategic infrastructures, etc.).

[...]

6 Conclusion

In accordance with the above and taking into consideration:

- a) On the one hand, the Relevant Regulation, published and well-known (discussed in this document and corroborated in the Legal Opinion of DLA Piper that is attached);

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- b) On the one hand, the specific circumstances of the data transfers carried out by FREEPIK

(especially, the limited richness and importance of the personal data processed, and its lack of connection to the objective scope of the Relevant Regulation applicable);
We understand that purely and simply, the Relevant Regulation is not applicable to the personal data exported by FREEPIK.

Thus, we understand that the personal data subject to international transfer to the United States of America is objectively outside the reach of the Intelligence Agencies of this country.
This is in light of the legal requirements imposed by FISA, which, as a prerequisite, require that the nature of the information expected to be obtained with the requested access be justified in a particularized and fact-based manner (which must be linked to the concept of "Foreign Intelligence," as the purpose of the surveillance).

Therefore, we understand that the international transfers of personal data from FREEPIK to the United States of America related to the Tool subject to the request by the AEPD did not undermine the level of protection guaranteed by the GDPR to its holders, neither during the validity of the Privacy Shield nor after its annulment, since FACEBOOK imposed its transfer model based on Standard Contractual Clauses.

[...]

17.

And as a conclusion, it stated:

“[...]

After this analysis, FREEPIK considers that, given the specific circumstances of the international data transfer for which information is requested (and especially the nature of the personal data subject to transfer, in light of the controversial regulation indicated in the Schrems II ruling), the data subjects - users of the FREEPIK website - will not be affected by the deficiencies noted by that ruling in the regulation of the United States of America.

Consequently, the standard contractual clauses governing the relationship between FREEPIK and FACEBOOK IRELAND are considered sufficient without the need to implement additional measures.

[...]

In accordance with all of the above, we consider that materially, the international transfers of personal data that FREEPIK carries out through the Tool to FACEBOOK do not undermine the protection recognized by the GDPR to its holders.

[...]

And our interpretation was and continues to be that in the case of the transfers made by FREEPIK through the Tool, the applicable U.S. regulation does not undermine the level of protection recognized to the data subject by the GDPR.

Our evaluation of international transfers is "in process," and as it cannot be otherwise, we make ourselves available to the Agency to clarify or expand on any aspect related to this or any other request.”

No additional guarantees are provided.

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18.

It also stated:

“[...]

Regarding FACEBOOK IRELAND, it is worth noting that this company has not responded to our request for information about its subcontracting chain (citing "commercial and security" reasons), so beyond the obvious and manifest processing by FACEBOOK Inc, of U.S. nationality, we are not aware of the identity or nationality of any of its possible data processors and/or sub-processors.”

3) According to the diligence dated January 28, 2021, on January 22, 2021, it was verified that while logged into Facebook with a test user and after visiting the page ***URL.1, that visit was recorded in

the "Activity outside of Facebook" section associated with the logged-in user.

4) According to the diligence dated January 28, 2021, on January 21 and 22, 2021, the content of:

a) The URL ***URL.3 was verified, where it stated:

"Conditions of Facebook's Business Tools.

[...]

ii. "Event Data": additional information you share about people and the actions they take on your websites, apps, or stores, such as visiting your websites, installing your apps, and purchasing your products.

Although Event Data includes information collected and transferred when people access a website or app using Facebook login or social plugins (e.g., the "Like" button), it does not include information created when a person interacts with our platform through Facebook login, social plugins, or otherwise (e.g., by logging in, indicating they like an article or song, or sharing them). The information created when a person interacts with our platform through Facebook login, social plugins, or otherwise is subject to the Platform Terms.

[...]

2. Use of Business Tools Data

a. Depending on the Facebook Business Tools you choose to use, we will use Business Tools Data for the following purposes:

i. Contact information for matching purposes

1. You instruct us to process Contact Information solely to establish matches with user identifiers ("Matching User Identifiers"), as well as to link these identifiers with the corresponding Event Data. We will delete the Contact Information after the matching process is completed.

ii. Event Data for measurement and analysis services

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1. You may instruct us to process Event Data to (a) prepare reports on your behalf regarding the impact of your advertising campaigns and other types of content on the internet ("Campaign Reports") and (b) generate analyses and statistics about the individuals and their use of your applications, websites, products, and services ("Analyses").

2. We grant you a non-exclusive and non-transferable license to use the Campaign Reports and Analyses solely for internal business purposes and only in an anonymous and aggregate manner for measurement-related objectives. You shall not disclose the Campaign Reports or Analyses (or any part thereof) to third parties, unless you have our written consent. We will not disclose the Campaign Reports or Analyses (or any part thereof) to third parties without your permission, except where (i) they have been integrated with Campaign Reports and Analyses from various third parties and (ii) your identifying information has been removed from such integrated documents.

iii. Event Data for targeting your ads

1. You may provide Event Data to target advertising campaigns to individuals who interact with your business. You may request us to create custom audiences, which are groups of Facebook users based on Event Data, to target advertising campaigns (including website custom audiences, mobile app custom audiences, and off-Facebook custom audiences). Facebook will process the Event Data to create such audiences for you. You may not sell or transfer these audiences, nor authorize third parties to sell or transfer them. Facebook will not provide such audiences to other advertisers unless you or your service providers share audiences with other advertisers through tools we provide for that purpose, in accordance with the restrictions and requirements of such tools and our terms.

2. These conditions apply to the use of website custom audiences, mobile app custom audiences, and off-Facebook custom audiences that have been created using Facebook's Business Tools. Custom audiences from a customer list provided through our standalone custom audience feature are subject to the Custom Audiences from a Customer List Terms.

iv. Event Data for sending commercial and transactional messages

1. We may use matching user identifiers and the associated Event Data to help you contact individuals through commercial and transactional messages on Messenger and other Facebook business products.

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v. Event Data to improve ad delivery, personalize features and content, and enhance and protect Facebook products

1. You may provide Event Data to improve ad targeting and optimize the delivery of advertising campaigns. We may correlate such Event Data with individuals using Facebook business products to support your advertising campaign objectives, improve the effectiveness of ad delivery models, and determine the relevance of ads to individuals. We may use Event Data to personalize the features and content (including ads and recommendations) we show to individuals both within and outside Facebook business products. Regarding ad targeting and delivery optimization, (i) we will use Event Data for delivery optimization only after incorporating it with data obtained from other advertisers or information collected from Facebook products, and (ii) we will not allow other advertisers or third parties to show ads based solely on Event Data.

2. Furthermore, to enhance the experience for individuals using Facebook business products, we may use Event Data to promote safety and security within and outside Facebook business products, for research and development purposes, and to maintain and improve the integrity of such products.

[...]

4. Modification, termination, and retention.

[...]

b. Under these conditions, we may retain Event Data for a maximum period of two years. We will retain any audience you have created using this data until you delete it through your account tools. [...]

[...]

5. Other conditions for the processing of Personal Information

a. To the extent that Business Tools Data contains Personal Information that you process in accordance with the General Data Protection Regulation (Regulation (EU) 2016/679) (the 'GDPR'), the following conditions apply:

i. The Parties acknowledge and agree that you are the Controller with respect to the Processing of Personal Information in the Business Tools Data for the purpose of providing the matching, measurement, and analysis services described above in sections 2.a.i and 2.a.ii (for example, to provide you with Analyses and Campaign Reports), and that you request Facebook Ireland Ltd., 4 Grand Canal Square, Grand Canal Harbour, Dublin 2 Ireland ("Facebook Ireland") to process such Personal Information for that purpose and on your behalf, as

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Processor in accordance with these Conditions of Facebook Business Tools and the Facebook Data Processing Terms. The Data Processing Terms are expressly incorporated by reference into these Conditions of the Business Tools and apply between you and Facebook Ireland along with these Conditions of the Business Tools.

ii. Regarding the Personal Information in Event Data related to the actions of individuals on your websites and applications that integrate Facebook Business Tools for which you and Facebook Ireland jointly determine the means and purposes, you and Facebook Ireland acknowledge and agree to be Joint Controllers in accordance with Article 26 of the GDPR. The joint responsibility encompasses the collection of such Personal Information through Facebook Business Tools and its subsequent

transmission to Facebook Ireland, for the purposes set forth earlier in sections 2.a.iii to 2.a.v.1 ("Joint Processing"). For more information, click [here](#). The Joint Processing is subject to the Appendix for Controllers, which is expressly incorporated here by reference to these Conditions of the Business Tools and applies between you and Facebook Ireland along with these Conditions of the Business Tools. Facebook Ireland remains an independent Controller in accordance with Article 4(7) of the GDPR regarding the Processing of such data that is carried out after it is transmitted to Facebook Ireland.

iii. You and Facebook Ireland remain, as applicable in each case, Independent Controllers in accordance with Article 4(7) of the GDPR regarding the Processing of Personal Information in Business Tools Data under the GDPR that is not subject to sections 5.a.i and 5.a.ii.

[...]

b)

At the URL [***URL.5](#) it stated:

"Appendix on EU Data Transfers

This Appendix on EU Data Transfers ("Data Transfer Appendix") applies to the extent that FIL acts as a Data Processor of EU Data in accordance with the applicable product terms, such as the Facebook Business Tools Conditions or the Custom Audiences from Customer List Conditions ("Applicable Product Terms"), and the transfers of EU Data originating in the United Kingdom, the EU, the EEA, or Switzerland are made to its subprocessors Facebook, Inc.

1. Considering the circumstances, you instruct FIL to transfer EU Data to Facebook, Inc. in the United States for storage and further Processing. The Clauses apply between you and Facebook, Inc. in relation to the transfers of EU Data originating in the United Kingdom, the European Union, the European Economic Area, or Switzerland to Facebook, Inc., unless otherwise permitted in the GDPR.

a. Regarding the Clauses, you are the "data exporter" and Facebook, Inc. is the "data importer," according to the definition of these terms in such Clauses.

[...]

8. In this Data Transfer Appendix:

a. "Clauses" refers to the standard contractual clauses for the transfer of personal data to processors established in third countries that do not ensure an adequate level of data protection, as described in Article 46 of the GDPR and in accordance with the approval of Decision 2010/87/EU of the European Commission of February 5, 2010 (but excluding optional illustrative clauses).

[...]

c)

At the URL [***URL.6](#) it stated:

"Data Processing Terms

You agree that your use of certain Facebook Products may involve the sending of Personal Information to Facebook. These Data Processing Terms apply to the extent that it is stipulated that we must process Personal Information as a Processor under the applicable product terms ("Applicable Product Terms," and any Facebook products to which these apply, "Applicable Products"), such as the Facebook Business Tools Conditions and the Custom Audiences from Customer List Conditions.

[...]

10. You agree that Facebook may subcontract its obligations under these Data Processing Terms to a subprocessor that may be based in the United States, the European Union (EU), the European Economic Area (EEA), or other countries, provided that it is through a written agreement with such subprocessor imposing obligations that are at least as strict as those imposed on Facebook under these Data Processing Terms. If the subprocessor fails to comply with these obligations, Facebook will assume full responsibility to you for the performance of the subprocessor's obligations.

[...]

12. To the extent that the GDPR applies to the Processing you carry out as a Controller under these Data Processing Terms, the Data Transfer Appendix, which is part of these Terms and is hereby incorporated by reference, will apply to the transfers of Personal Information originating in the United Kingdom, the EU, the EEA, or Switzerland."

d)

At the URL ***URL.7 it stated, with an effective date of August 31, 2020:

"Appendix for Controllers

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This Appendix for controllers applies when it is expressly incorporated by reference to the Facebook product terms, as in the case of the Facebook Business Tools Terms (any such terms, the "Applicable Product Terms," and all Facebook products covered, the "Applicable Products"). The capitalized terms used in this Appendix for controllers that are not defined herein have the meanings set forth in the Applicable Product Terms. In the event of a conflict between the Applicable Product Terms and this Appendix for controllers, the latter shall prevail, but only with respect to the scope of such conflict.

Facebook and you agree as follows:

FIL, 4 Grand Canal Square, Grand Canal Harbour, Dublin 2, Ireland ("Facebook Ireland" or "we") and you (each, a "Party" and, collectively, the "Parties") are Joint Controllers (in accordance with Article 26 of the GDPR) of the Joint Processing specified in the Applicable Product Terms. The scope of the Joint Processing and this Appendix for controllers encompasses the collection of the Personal Data specified in the Applicable Product Terms and its transmission to Facebook Ireland. Subsequent processing of the data by Facebook Ireland is not part of the Joint Processing. You can find more information about the Joint Processing in the Applicable Product Terms.

[...]

To comply with the obligations stipulated in the GDPR regarding Joint Processing, your responsibilities and those of Facebook Ireland are determined as follows:

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The remaining responsibilities regarding compliance with the obligations stipulated in the GDPR concerning Joint Processing correspond to each Party individually.

[...]

e)

At the URL ***URL.8 it stated:

"[...]

Authentication

We use cookies to verify your account and determine if you are logged in, with the aim of helping you access Facebook products and showing you the appropriate experience and features.

For example: we use cookies to keep your session open while you navigate between Facebook pages. Cookies also help us remember your browser, so you do not have to log in to Facebook constantly and can do so easily through third-party applications and websites. For example, we use the "c_user" and "xs" cookies for this purpose, with a duration of 365 days.

[...]

Advertising, recommendations, statistics, and measurement

We use cookies to show ads from companies and other organizations, and recommend them to people who may be interested in the products, services, or causes promoted by those companies.

For example: cookies allow us to show ads to people who have previously visited a company's website, purchased its products, or used its applications, and recommend products and services based on that activity. They also allow us to limit the number of times an ad is shown, so you do not see the same one over and over again. For example, the "fr" cookie is used to show, measure, and improve the relevance of ads, and has a duration of 90 days.

We also use cookies to measure the performance of advertising campaigns from companies that use

Facebook products.

For example: we use cookies to count the number of times an ad is shown and calculate its cost. We also use cookies to measure how often people take certain actions, such as making a purchase after seeing an ad. The "_fbp" cookie identifies browsers to provide advertising and website analytics services, and has a duration of 90 days.

Cookies help us show and measure ads across different browsers and devices used by the same person.

For example: we can use cookies to prevent you from seeing the same ad repeatedly on the different devices you use.

[...]"

f)

At the URL ***URL.9 it stated:

"[...]"

What data does the Facebook pixel collect?

See our Cookie Policy for details about the cookies used and the data received. The Facebook pixel receives these types of data:

- Http Headers - Anything present in HTTP headers. HTTP Headers are a standard web protocol sent between any browser request and any server on the internet. HTTP Headers include IP addresses, information about the web browser, page location, document, referrer, and person using the website.
- Pixel-specific Data - Includes Pixel ID and the Facebook Cookie.
- Button Click Data - Includes any buttons clicked by site visitors, the labels of those buttons, and any pages visited as a result of the button clicks.
- Optional Values - Developers and marketers can optionally choose to send additional information about the visit through conversion tracking. Example custom data events are conversion value, page type, and more.
- Form Field Names — Includes website field names like 'email', 'address', 'quantity' for when you purchase a product or service. We don't capture field values unless you include them as part of Advanced Matching, or conversion tracking.

[...]"

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From its unofficial translation from English:

"[...]"

What data does the Facebook pixel collect?

Please refer to our Cookie Policy for more information about the cookies used and the data received.

The Facebook pixel receives the following types of data:

- Http Headers — Everything present in HTTP headers. Http Headers is a standard web protocol sent between any browser request and any internet server. Http Headers includes IP addresses, browser information, page location, document, referrer, and the person using the website.
- Pixel-specific data — Includes the Pixel ID and the Facebook Cookie.
- Button Click Data — Includes the buttons clicked by site visitors, the labels of those buttons, and the pages visited as a result of the button.
- Optional values — Developers and marketers can choose to send additional information about the visit through conversion tracking. Examples of custom data events include conversion value, page type, etc.
- Form field names — Includes field names from the website such as "email," "address," "amount" for the purchase of a product or service. We do not collect the values of the fields unless you include them as part of Advanced Matching or conversion tracking.

[...]"

g) In the URL ***URL.4 it stated:

5) According to the diligence dated April 16, 2021, on April 15, 2021, it was verified that without being logged into Facebook and after visiting the page ***URL.1, accepting its cookies, there were HTTP GET and POST requests sent to the domain facebook.com with, among other information, the following:

1. The value of the fbp cookie sent as a parameter within the URL.
2. Parameters sw, sh.
3. Field "accept-language"
4. Field "user-agent"
5. Parameter dl with the value ***URL.1

It was also verified that solely by logging into the Facebook account on facebook.com using a test user, cookies were installed in the browser, including c_user, fr.

Also, on April 15, 2021, it was verified that while logged into Facebook with a test user and after visiting the page ***URL.1, there were HTTP GET and POST requests sent to the domain facebook.com with, among other information, the following:

1. Cookies c_user and fr among others. The value of the fbp cookie sent as a parameter within the URL.
2. Parameters sw, sh.
3. Field "accept-language"
4. Field "user-agent"
5. Parameter dl with the value ***URL.1

6) As a result of the information request made by the SGID, on May 17, 2021, the respondent party sent the following information and statements to this Agency:

1. That the Facebook Pixel had been removed from the code of the various websites under the domain of the respondent party.
2. That traffic directed to the website of the respondent party was provided, broken down by country of origin and during the period from April 11 to May 10, 2021. This traffic included, among others:
For the website ***URL.1 countries of origin such as (...).
For the website ***URL.1 countries of origin include (...).
For ***URL.10 countries of origin include (...).
For ***URL.10 countries of origin include (...).

7) As a result of the information request made by the Inspection, on June 4, 2021, the respondent party sent the following information and statements to this Agency:

1. That the respondent party was located 100% in Spain.
2. That all its workers and material means were located in Spain.

FIFTH: On October 5, 2021, the work of the TF101 working group had not concluded, which is why the expiration of the prior investigation proceedings was declared due to having passed more than twelve months since its initiation, subsequently opening new investigation proceedings as the infringement had not expired. All investigative actions carried out have been incorporated into the documentation in that new procedure.

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SIXTH: The General Subdirectorate for Data Inspection continued with the preliminary investigation actions to clarify the facts in question, being aware of the following aspects:

1) As a result of the information request made by the Inspection, dated January 17, 2022, the party being claimed

submitted the following information and statements to this Agency:

a. That the manner in which the purposes and means were determined before the removal of Facebook Pixel from the websites of the party being claimed was:

"[...]"

Although Facebook self-designates as a "data processor" regarding the data processing outlined in

stipulation 5.a.i of Facebook's "Data Processing Conditions," we understand that the correct legal qualification is that Freepik was jointly responsible along with Facebook concerning the data processing carried out in relation to sections 2.a.i and 2.a.ii of the Tools Conditions.

Regarding the choice of purposes, Freepik and Facebook jointly determined in the past the purpose, which was to measure the results of the actions comprising a specific campaign, carried out by the individuals impacted by it.

With respect to the choice of means, Facebook decides and preconfigures up to 18 event options in its control console. Freepik only selected those it deemed strictly necessary to obtain visibility of the results of its campaigns. It is important to highlight that Freepik had the possibility but did not create different events, and only selected 5 of those 18 events, to obtain aggregated information about which of the selected events were performed by the individuals impacted by the campaign. That is to say, Freepik substantially limited the scope of its processing, within the parameters provided by Facebook. [...]"

And subsequently added:

"[...]"

Regarding the determination of purposes, Freepik and Facebook jointly determined the purpose of the processing, which is to show a specific advertisement to a set of individuals (the custom audience) that constituted the target audience of each campaign.

As for the determination of means, Freepik and Facebook jointly determined the means for segmenting said audience. Freepik participated in the determination of the means by choosing to use part of the services offered by Facebook and requesting that it impact a custom audience based on certain criteria. Facebook, for its part, had decided to process the personal data of its users by profiling them according to multiple criteria that it made available to Freepik. In this sense, Facebook had already designed the essential means of processing (such as the categories of data subject to processing, the selection criteria offered, and who will have access (and to what) personal data in the context of each specific campaign.

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[...]"

b.

That in relation to the insertion and use of Facebook Login on its websites, the defendant and FACEBOOK were co-responsible.

And it stated:

"[...]"

Freepik and Facebook are co-responsible in relation to the insertion and use of Facebook Login on Freepik's websites.

Regarding the data processing related to Facebook Login, Freepik decides to integrate it into its website to delegate to Facebook the task of identifying users who utilize it. The benefits for Freepik (and for users) are evident, from the perspective of (i) "user experience" as it facilitates the initial access (registration) and subsequent access as a registered user of Freepik to users registered on Facebook with minimal friction, and (ii) security, as the user does not have to create ad hoc passwords, and Freepik does not have to store them or assume the risk of their loss or access by unauthorized third parties.

By way of example, in our own experience, federated registration significantly limited the consequences of the security breach reported to this Agency on June 29, 2020, in which an external attacker was able to access the email addresses of 8.3M users. Of the number of users affected by this breach, more than half (4.5M) had their accounts federated with FACEBOOK or another platform, so the attacker could only access their email address.

Regarding the means, they are jointly decided upon when Freepik inserts the login button code on its websites, which, when clicked by the user, activates the registration procedure in the Facebook modal

window.

Freepik limits its responsibility to the regular functioning of the button embedded in its websites, within the options enabled by Facebook, and to minimizing the scope of personal data processing in the process. It should be emphasized that Facebook does not obtain any additional personal data beyond the record of the date and time when each common registered user accesses Freepik.

[...]"

b.

That in relation to how the interested parties were informed of the respective responsibilities according to Article 26 of the GDPR, it stated that in the "modal window" of "Facebook Login" controlled by FACEBOOK, information was provided regarding the processing carried out by both co-responsibles. It provides a screenshot where the Facebook Login window is seen, where the user had to enter their username and password, and it then stated, "If you continue, Freepik Company will have continuous access to the information you share, and Facebook will record when Freepik Company accesses it. More information about this data you share and your settings. Privacy Policy and Terms of Freepik Company." where the words "More information," "Privacy Policy," and "Terms" are hyperlinks. And it stated that in the link of the web service archive ***URL.11 it stated:

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"[...]"

Additionally, Freepik contracts personalized advertising services from various social media platforms (such as Facebook and others) to attract potential new users to our website who have been profiled by these platforms according to their interests. Freepik selects, from those profiles, those we believe may be interested in our products (for example, users who have already visited our websites or those users from a specific age range or geographical location).

These platforms integrate "cookies" and other technologies (from Facebook, for example) on our website that, -with your prior consent to their use-, allow them to observe, for example, whether their users have only accessed the Freepik website and left without further action, or have downloaded products or become Premium users.

They then provide us with that information in an aggregated and anonymous form to bill us accordingly, which allows us to better understand the profitability of our advertising campaigns on each platform.

Additionally, we can show ads to visitors who have left our website, e.g., without registering, to try to convince them to do so (remarketing).

In relation to these data processing activities, Freepik is "jointly responsible" along with each of these platforms, regarding (i) the selection of the interests of their users to whom we request to show our advertising; (ii) their tracking and observation on our website; and (iii) the provision of statistical and aggregated data to Freepik about the results of these campaigns, that is, the conversion, if applicable, into our customers.

All these processes are carried out without Freepik being able to identify you: we only identify you when you register as a free or premium user.

Furthermore, Freepik does not participate in or take responsibility for the processing carried out by the mentioned advertisers and platforms for their own purposes, either prior to or subsequent to the processing carried out jointly with Freepik. Freepik is adhered to the standard agreement on Joint Responsibility of Facebook, under which we have described the scope of our shared processing, we provide you with the link to Facebook Ireland's privacy policy, where it informs about the legally mandatory aspects, and we inform you that Facebook Ireland will be responsible for addressing the rights regarding data protection (arts. 15 to 20 of the General Data Protection Regulation) related to the personal data stored by Facebook Ireland after the shared processing.

[...]"

And it stated that, currently, its information no longer referred to these processes concerning the

Facebook Pixel, once it was removed.

c. It also stated, regarding Facebook Login, that its privacy policy currently stated the following:

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"You can open your account as a registered User on Freepik with your own account on other platforms, such as Facebook, using the federated Logins that you will find at the top of our websites, and access it whenever you want through the same, without the need to create and remember a specific username and password to access Freepik.

This option is possible thanks to the collaboration between Freepik and these platforms as joint data controllers for the processing of your personal data, so that (i) you can identify yourself directly on these platforms, (ii) they confirm to us that you are who you say you are, and (iii) we facilitate your entry as a registered user on Freepik.

Freepik obtains from these platforms, with your consent, your username, image, and your email address for the purpose of registering you as a user of Freepik. These platforms capture online identifiers (IP address), technical identifiers (from your device, as well as their advertising identifiers such as "google id" or "apple id") and record, each time you use their login, the date and time of your access to Freepik.

You can exercise your rights of access, rectification, deletion, limitation of processing, portability, and revocation of consent related to the personal data obtained from these platforms (and others you may have provided to Freepik in your relationship with us) by contacting Freepik at the email address provided in this policy.

Note! The rectification or deletion of your data in your Freepik account does not automatically imply the rectification or deletion of your data and accounts from the platforms that authenticate your identity: you must also contact them to exercise your rights.

To exercise your rights regarding personal data protection in relation to any other data derived from your relationship with these platforms, you must contact the corresponding platform.

You can obtain additional information at the following links:

1. Facebook:

Appendix for data controllers and joint controllers of Facebook (available at this link).

Facebook's privacy policy at this link. (...)

d.

In response to what the contract with FIL or with FACEBOOK INC. was, in accordance with Article 28.3 of the GDPR, it was stated that it was the one found at the address ***URL.

e.

It was stated:

"[...]

we consider that the identifiers and other information obtained directly from the user through the Facebook login (as described in the previous response) are undoubtedly personal data, because they are subject to capture and processing and are added to the rest of the personal data of each registered user —therefore identified— of Facebook.

[...]"

f.

That according to the "Appendix on the transfer of data of European citizens from Facebook" applicable since September 27, 2021, the transfer of data to the United States was based on:

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a.

Standard contractual clauses (2010) between the data controller (Facebook Ireland) and the data processor (Facebook Inc). (Clause 6.c) of the appendix).

b. Standard contractual clauses (2021 P2P or between data processors) among the subsidiaries of the Facebook group. (Clause 6.i) of the appendix).

g. Regarding the existence of international transfer, it stated:

“[...]

We find it appropriate to add that, given the recent Guidelines 5/2021 of the EDPB, there is no international transfer of personal data in this process, as the flow of personal data occurs not between the Freepik website and Facebook, but directly between the Facebook user and Facebook, at the initiative of the user, and through the Facebook modal window (see, mutatis mutandis, example 1 described on page 5 of those Guidelines).

If there were an international transfer of data (and we maintain that there is not), from our point of view the core issue would be the legal possibility and practical likelihood that U.S. intelligence agencies would require access to precisely that access history to Freepik, the only data that Facebook obtains as a result of the operation of Facebook Login on Freepik.”

h. In response to whether supplementary measures had been applied by the respondent party or FACEBOOK, it stated:

“We continue to consider that, given the circumstances, such data flow (even if it were considered an international data transfer) does not require any supplementary measures in the sense of Recommendations 1/2020 of the EDPB. If there were an international transfer of data (and we maintain that there is not), from our point of view the key issue would then be the legal possibility and practical likelihood that U.S. intelligence agencies would formally require access to precisely that access data to Freepik, the only data that Facebook obtains as a result of the operation of Facebook Login on our website. For the reasons argued before this Agency in December 2020, we believe there are objective reasons to consider that there is a minimal probability that U.S. intelligence agencies would require the data processed by Freepik.”

i. According to the diligence dated March 22, 2022, on February 8, 2022, it was verified that while logged into Facebook with a test user, and after visiting the page ***URL.1 accepting all its cookies, there were no HTTP requests sent to the domains facebook.com or facebook.net.

2) According to the diligence dated May 26, 2022, on that same day it was verified that:

1. The cookies loaded in the browser when logging into Facebook with a test user were: presence, xs, c_user, fr, sb, datr all installed by the domain facebook.com.

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2. While logged into Facebook with a test user and after visiting the page ***URL.1, there were no HTTP requests sent to any domain with the word “facebook.”

3) According to the diligence dated September 14, 2022, on that same day it was verified that while previously logged into a Facebook account, when visiting the website ***URL.1 and clicking on the Facebook icon to register as a user, the following data, among others, was transmitted to the domain facebook.com within an HTTP POST request:

1. cookies datr, sb, c_user, fr, xs, presence.
2. parameter “accept-language.”
3. parameter “user-agent.”
4. within the referer field, the following information:
(...).

4) According to the diligence dated September 15, 2022, on May 5, 2021, FIL sent the following

information and statements to the Irish Data Protection Authority (DPC), from its unofficial translation from English:

(...).

Its unofficial translation into Spanish:

(...).

c.

It stated:

[...]

Its unofficial translation into Spanish:

[...]

On September 10, 2021, FIL sent the following information and statements to the Irish Data Protection Authority (DPC):

a.

It stated:

[...]

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[...]

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Being its unofficial translation into Spanish:

[...]

Being its unofficial translation into Spanish:

[...]

From its unofficial translation of the original in English below:

[...]

On May 16, 2022, META PLATFORMS INC (formerly FACEBOOK INC.) submitted to the Austrian Data Protection Authority (DSB) the following information and statements, from its unofficial translation of the original in German, primarily concerning the FACEBOOK LOGIN tool. These statements were contained in the transcript of the oral procedure held between the DSB and META PLATFORMS INC and had been shared by the DSB within the framework of the working group TF101.

1.

Regarding the roles: [...]

2.

Regarding the data processed: [...]

SEVENTH: On October 27, 2022, the work of the TF101 working group had not concluded, which is why the expiration of the prior investigation proceedings was declared due to the passage of more than twelve months since its initiation, subsequently opening new investigation proceedings as the infringement had not expired. All investigation proceedings conducted have been incorporated into the documentation in the present procedure.

EIGHTH: On July 20, 2023, the General Subdirectorate of Data Inspection of this Agency verified that FACEBOOK continues to publish the FISA requests it receives on the internet.

NINTH: On November 17, 2023, the Director of the Spanish Data Protection Agency agreed to initiate a warning procedure against the complained party for the alleged infringement of Article 44 of the GDPR, classified under Article 83.4 of the GDPR.

TENTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on November 20, 2023, as stated in the acknowledgment of receipt in the file.

ELEVENTH: On November 30, 2023, a written statement of allegations was received from the complained party in which, in summary, the following considerations were made:

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- It maintains the considerations already made in the preliminary investigation phase
- The complained party has implemented the most appropriate legal mechanisms for transfer and measures available at each moment
- Since the approval in the USA and the European Union of the regulatory instruments and their application to Meta Platforms Ireland Limited (formerly Facebook Ireland) and Meta Platforms Inc (formerly Facebook Platforms Inc), there is no infringement nor need for the Agency to impose further regularization measures.
- Entry into force of new relevant regulations on both sides of the Atlantic with the approval of the "Trans-Atlantic Data Privacy Framework": An equivalent system to the pre-existing Privacy Shield was established, to which new guarantees were added
- Application of the DPF to Facebook

TWELFTH: On February 21, 2024, the complained party submitted a document to this Agency informing that it had decided to eliminate the Facebook login or "federated login" as an alternative access method for registered users of the various Freepik websites. This elimination became effective on February 9, 2024.

In view of all that has been acted upon, the Spanish Data Protection Agency considers the following facts to be proven in the present procedure:

PROVEN FACTS

FIRST: On September 2, 2020, in the plenary session of the European Data Protection Committee, it was decided to create a working group (hereinafter, "TF101") to ensure a coherent approach among European data authorities to manage the 101 complaints from NOYB, which dealt with similar issues (the complainant had visited a website of a data controller while logged into their Google or Facebook account linked to their email address. The data controller had embedded code from Google or Facebook, which had transferred their personal data to the United States without having a legal basis for it), as stated in the diligence dated October 25, 2023.

SECOND: "Facebook Connect" was the tool that, at the time, allowed user registration using FACEBOOK credentials instead of creating a specific username and password for the service. As of December 11, 2020, it was referred to as "Facebook Login," as explained in the response document to the request from the complained party dated that date.

THIRD: The websites of the complained party had embedded the "Facebook Login" code as of December 11, 2020, as explained in the response document to the request from the complained party dated that date.

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FOURTH: The websites of the responding party used "Facebook Login" as a federated identity as of December 11, 2020, as explained in the response document to the request from the responding party dated that day.

FIFTH: The operation of "Facebook Login" as of December 11, 2020, was as follows: when the user decided to create their account using their FACEBOOK credentials and clicked the social network button, a call was made to the FACEBOOK API, which opened a window in which the user had to enter their email address and password for their FACEBOOK account to complete the registration process. In this window, controlled by FACEBOOK, the user was informed that FACEBOOK would share certain data with FREEPIK to carry out the registration process, such as name, photo, and email address. And only when the interested party had given their specific consent to this processing did the

process conclude, and the user account was created on FREEPIK. FREEPIK received only the user's name, email account, and photo. All of this is explained in the response document to the request from the responding party dated that day.

SIXTH: As of December 11, 2020, depending on the configuration, "Facebook Login" allowed obtaining, with prior approval from the interested party, a number of personal data of varying scope, such as, for example, the list of friends on FACEBOOK, the pages that have been liked, location, or gender. In the case of the responding party, they only requested and obtained, with prior consent, the minimum possible data: username, email address, and photo. The mandatory fields included the name and profile photo, and the email address was an optional field. All of this is explained in the response document to the request from the responding party dated that day.

SEVENTH: As of December 11, 2020, the login was configured to send information about the visitor directly to FACEBOOK. FACEBOOK provided a summary of the data processed by its products at ***URL.4. The contract governing their relationship with FACEBOOK was located at ***URL.3. All of this is explained in the response document to the request from the responding party dated December 11, 2023.

EIGHTH: As of December 11, 2020, the international transfer of personal data between the responding party and FACEBOOK was based on the EU Data Transfer Appendix located at ***URL.5. The model of standard contractual clauses used was that of the Commission in 2010. All of this is explained in the response document to the request from the responding party dated December 11, 2023.

NINTH: As of December 11, 2020, the Foreign Intelligence Surveillance Act (FISA) allowed for the interception of communications, content, and metadata that crossed between foreign powers, agents, and facilities, with content materially related to activities linked to terrorism, hostile acts, weapons of mass destruction, clandestine espionage activities, or with national defense or foreign affairs activities of the U.S. Following 2016, the ability to request, based on Section 702, information based on keywords to be found in the content of communications has been restricted (what...

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It was referred to with requests regarding "about," so information can only be requested based on identifiers ("selector") of the person who sends or receives the communication (referred to as "from" and/or "to" requests). All of this is explained in the response document to the request from the defendant dated December 11, 2023.

TENTH: On January 22, 2021, while logged into Facebook with a test user and after visiting the page ***URL.1, this visit was recorded in the "Activity off Facebook" section associated with the logged-in user, as noted in the diligence of January 28, 2021.

ELEVENTH: On January 21 and 22, 2021, as stated in the diligence of January 28, 2021, at the URL ***URL.3 it was stated:

"Conditions of Facebook's Business Tools.

[...]

ii. "Event Data": additional information you share about people and the actions they take on your websites, apps, or stores, such as visiting your websites, installing your apps, and purchasing your products. Although Event Data includes information collected and transferred when people access a website or an app by logging in with Facebook or through social plugins (for example, the "Like" button), it does not include information created when a person interacts with our platform through Facebook login, social plugins, or any other means (for example, by logging in, indicating they like an article or a song, or sharing them). The information created when a person interacts with our platform through Facebook login, social plugins, or any other means is subject to the Platform's Terms.

[...]

2. Use of Business Tools Data

a. Depending on the Facebook Business Tools you choose to use, we will use the Business Tools Data for the following purposes:

i. Contact information for matching

1. You instruct us to process the Contact Information solely to establish matches with user identifiers ("Matching User Identifiers"), as well as to link these identifiers with the corresponding Event Data. We will delete the Contact Information after the matching process is completed.

ii. Event Data for measurement and analysis services

1. You may instruct us to process the Event Data for (a) generating reports on your behalf regarding the impact of your advertising campaigns and other types of content on the internet ("Campaign Reports") and (b) generating analyses and statistics about people and their use of your apps, websites, products, and services ("Analytics").

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2. We grant you a non-exclusive and non-transferable license to use the Campaign Reports and the Analyses solely for internal business purposes and only in an anonymous and aggregate manner for measurement-related objectives. You shall not disclose the Campaign Reports or the Analyses (or any part thereof) to third parties, unless you have our written consent. We will not disclose the Campaign Reports or the Analyses (or any part thereof) to third parties without your permission, except that (i) they have been integrated with Campaign Reports and Analyses from various third parties and (ii) your identifying information has been removed from such integrated documents.

iii. Event Data to Target Your Ads

1. You may provide Event Data to target advertising campaigns to individuals who interact with your business. You can request us to create custom audiences, which are groups of Facebook users based on Event Data, to target advertising campaigns (including website custom audiences, mobile app custom audiences, and offline custom audiences). Facebook will process the Event Data in order to create such audiences for you. You may not sell or transfer these audiences, nor authorize third parties to sell or transfer them. Facebook will not provide such audiences to other advertisers unless you or your service providers share audiences with other advertisers through tools we offer for that purpose, in accordance with the restrictions and requirements of such tools and our terms.

2. These conditions apply to the use of website custom audiences, mobile app custom audiences, and offline custom audiences that have been created using Facebook's Business Tools. Custom audiences from a customer list provided through our standalone custom audience feature are subject to the Terms for Custom Audiences from a Customer List.

iv. Event Data to Send Commercial and Transactional Messages

1. We may use matching User Identifiers and associated Event Data in order to help you reach out to individuals through commercial and transactional messages on Messenger and other Facebook business products.

v. Event Data to Improve Ad Delivery, Personalize Features and Content, and Enhance and Protect Facebook Products

1. You may provide Event Data to improve ad targeting and optimize the delivery of advertising campaigns. We may establish a correlation between that Event Data and the individuals who use the 34/63

products of the companies of Facebook to support the objectives of your advertising campaign, improve the effectiveness of ad delivery models, and determine the relevance of ads for individuals. We may use Event Data to personalize the features and content (including ads and recommendations) that we show to individuals both within and outside the products of the companies of Facebook. Regarding ad targeting and delivery optimization, (i) we will use Event Data for delivery optimization only after incorporating it into data obtained from other advertisers or information that has been collected from Facebook products, and (ii) we will not allow other advertisers or third parties to show advertising based solely on Event Data.

2. Likewise, in order to improve the experience for individuals using products of the companies of Facebook, we may use Event Data to promote safety and protection within and outside the products of the companies of Facebook, for research and development purposes, and to maintain the integrity of such products and improve them.

5. Other conditions for the processing of Personal Information

a. To the extent that the Business Tools Data contains Personal Information that you process in

accordance with the General Data Protection Regulation (Regulation (EU) 2016/679) (the 'GDPR'), the following conditions apply:

- i. The Parties acknowledge and agree that you are the Controller with respect to the Processing of Personal Information in the Business Tools Data for the purpose of providing the matching, measurement, and analysis services described above in sections 2.a.i and 2.a.ii (for example, to provide you with Campaign Analytics and Reports), and that you request Facebook Ireland Ltd., 4 Grand Canal Square, Grand Canal Harbour, Dublin 2 Ireland ("Facebook Ireland") to Process such Personal Information for that purpose and on your behalf, as Processor in accordance with these Facebook Business Tools Terms and the Facebook Data Processing Terms. The Data Processing Terms are expressly incorporated by this reference into these Business Tools Terms and apply between you and Facebook Ireland along with these Business Tools Terms.
- ii. Regarding the Personal Information in Event Data related to the actions of individuals on your websites and applications that integrate Facebook Business Tools for which you and Facebook Ireland jointly determine the means and purposes of Processing, you and Facebook Ireland acknowledge and agree to be Joint Controllers in accordance with Article 26 of the GDPR. The shared responsibility

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covers the collection of such personal Information through Facebook's business tools and its subsequent transmission to Facebook Ireland, for the purposes set forth previously in sections 2.a.iii to 2.a.v.1 ("Joint Processing"). For more information, click here. The Joint Processing is subject to the Appendix for controllers, which is expressly incorporated here by this reference to the present Terms of the business tools, and applies between you and Facebook Ireland along with the present Terms of the business tools. Facebook Ireland remains an independent Controller in accordance with Article 4(7) of the GDPR regarding the Processing of such data that is carried out after it is transmitted to Facebook Ireland.

- iii. You and Facebook Ireland remain, as applicable in each case, independent Controllers in accordance with Article 4(7) of the GDPR regarding the Processing of personal Information in business tools Data under the GDPR that is not subject to sections 5.a.i and 5.a.ii.

[...]

TWELFTH: On January 21 and 22, 2021, as recorded in the diligence of January 28, 2021, at the URL ***URL.5 it stated:

"Appendix on EU Data Transfer of Facebook

This Appendix on EU Data Transfer ("Data Transfer Appendix") applies to the extent that FIL acts as a Data Processor of the EU in accordance with the applicable product terms, such as the Terms of Facebook's business tools or the Terms of Custom Audiences from a customer list ("Applicable Product Terms"), and the transfers of EU Data originating in the United Kingdom, the EU, the EEA, or Switzerland are made to its subprocessors Facebook, Inc.

1. Considering the circumstances, you instruct FIL to transfer the EU Data to Facebook, Inc. in the United States for storage and further Processing. The Clauses apply between you and Facebook, Inc. regarding the transfers of EU Data originating in the United Kingdom, the European Union, the European Economic Area, or Switzerland to Facebook, Inc., unless otherwise permitted in the GDPR.
 - a. Regarding the Clauses, you are the "data exporter" and Facebook, Inc. is the "data importer," according to the definition of these terms in said Clauses.

[...]

8. In this Data Transfer Appendix:

- a. "Clauses" refers to the standard data protection clauses for the transfer of personal data to processors established in third countries that do not ensure an adequate level of data protection, as described in Article 46 of the GDPR and in accordance with the approval of Decision 2010/87/EU of the European Commission of February 5, 2010 (but excluding optional illustrative clauses).

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[...]"

THIRTEENTH: On January 21 and 22, 2021, as recorded in the diligence of January 28, 2021, at the URL ***URL.6 it stated:

"Data Processing Terms

You agree that your use of certain Facebook Products may involve the sending of personal Information to Facebook. These Data Processing Terms apply to the extent that it is stipulated that we must process personal Information as a Processor under the applicable product terms ("Applicable Product Terms," and any Facebook products to which these apply, "Applicable Products"), such as the Terms of Facebook's business tools and the Terms of Custom Audiences from a customer list

[...]

10. You agree that Facebook may subcontract the obligations it has under these Data Processing Terms to a subprocessor that may be based in the United States, the European Union (EU), the European Economic Area (EEA), or other countries, provided that it is through a written agreement with such subprocessor imposing obligations that are at least as strict as those imposed on Facebook in these Data Processing Terms. If the subprocessor fails to comply with these obligations, Facebook will assume full responsibility to you for the performance of the subprocessor's obligations.

[...]

12. To the extent that the GDPR applies to the Processing you carry out as a Controller under these Data Processing Terms, the Data Transfer Appendix, which is part of these Terms and is incorporated into these by this reference, will apply to the transfers of personal Information originating in the United Kingdom, the EU, the EEA, or Switzerland."

FOURTEENTH: On April 15, 2021, as recorded in the diligence of April 16, 2021, while not logged into Facebook and after visiting the page ***URL.1, accepting its cookies, there were http GET and POST requests sent to the domain facebook.com with, among other information, the following:

1. The value of the fbp cookie sent as a parameter within the URL.
2. parameters sw, sh.
3. field "accept-language"
4. field "user-agent"
5. parameter dl with the value https://***URL.1

By performing the login operation on the Facebook account at facebook.com using a test user, cookies were installed in the browser, including c_user, fr.

FIFTEENTH: On April 15, 2021, as recorded in the diligence of April 16, 2021, while logged into Facebook with a test user and after visiting the page

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***URL.1 contained HTTP GET and POST requests sent to the domain facebook.com with, among other information, the following:

1. cookies c_user and fr among others. The value of the cookie fbp sent as a parameter within the URL.
2. parameters sw, sh.
3. field "accept-language"
4. field "user-agent"
5. parameter dl with the value https://***URL.1

SEVENTEENTH: From April 11 to May 10, 2021, as explained in the response document of the responding party to the request dated May 17, 2021, the traffic directed to the website of the

responding party broken down by country of origin was distributed as follows:

- For the website ***URL.1 countries of origin such as (...).
- For the website ***URL.1 countries of origin (...).
- For ***URL.10 countries of origin included (...).
- For ***URL.10 countries of origin included (...).

EIGHTEENTH: As of June 4, 2021, as explained in its response document dated that date, the responding party was located 100% in Spain and all its workers and material means were located in Spain.

NINETEENTH: As of January 17, 2022, as explained in the document of the responding party dated January 17, 2022, in the "modal window" of "Facebook Login" where the user had to enter username and password, it stated "If you continue, Freepik Company will have continuous access to the information you share and Facebook will record when Freepik Company accesses it. More information about this data you share and your settings. Privacy Policy and Terms of Freepik Company." where the words "More information," "Privacy Policy," and "Terms" are hyperlinks.

TWENTIETH: As stated by the responding party in its document of January 17, 2022, as of that date, its privacy policy stated the following:

"You can open your account as a registered User on Freepik with your own account on other platforms, such as Facebook, using the federated Logins you will find at the top of our websites, and access whenever you want through them, without the need to create and remember a specific username and password to access Freepik.

This option is possible thanks to the collaboration between Freepik and these platforms as joint data controllers, so that (i) you can identify yourself directly on these platforms, (ii) they confirm to us that you are who you say you are, and (iii) we facilitate your entry as a registered user on Freepik.

Freepik obtains from these platforms, with your consent, your username, image, and your email address in order to proceed with your registration as a user of Freepik. These platforms capture online identifiers (IP address), technical identifiers (from your device, as well as their advertising identifiers such as "google id" or "apple id") and record, each time you use their login, the date and time of your access to Freepik.

You can exercise your rights of access, rectification, deletion, limitation of processing, portability, and revocation of consent related to the personal data obtained from these platforms (and others you may have provided to Freepik in your relationship with us) by contacting Freepik at the email address provided in this policy.

iAttention! The rectification or deletion of your data in your Freepik account does not automatically imply the rectification or deletion of your data and accounts from the platforms that authenticate your identity: you must also contact them to exercise your rights.

To exercise your rights regarding personal data protection in relation to any other data derived from your relationship with these platforms, you must contact the corresponding platform.

You can obtain additional information at the following links:

1. Facebook:

Appendix for data controllers and joint controllers of Facebook (available at this link).

Privacy policy of Facebook at this link. (...)"

TWENTY-FIRST: The contract entered into between the responding party and FIL or FACEBOOK INC., in accordance with art. 28.3 GDPR, was the one found at the address ***URL.6, as stated by the responding party in its document of January 17, 2022.

TWENTY-SECOND: As of January 17, 2022, as stated by the responding party in its document of that date, according to the "Appendix on the transfer of data of European citizens from Facebook" applicable since September 27, 2021, the transfer of data to the United States was based on:

a. Standard contractual clauses (2010) between the controller (Facebook Ireland) and the processor (Facebook Inc). (Clause 6.c) of the appendix).

b. Standard contractual clauses (2021 P2P or between processors) between the subsidiaries of the Facebook group. (Clause 6.i) of the appendix).

TWENTY-THIRD: On February 8, 2022, while logged into Facebook with a test user, and after visiting the page ***URL.1 accepting all its cookies, there were no HTTP requests sent to the domain facebook.com or facebook.net, according to the diligence of March 22, 2022.

TWENTY-FOURTH: On May 26, 2022, as stated in the diligence of that date:

1. The cookies loaded in the browser when logging into Facebook with a test user were: presence, xs, c_user, fr, sb, datr all installed by the domain facebook.com.
2. While logged into Facebook with a test user and after visiting the page ***URL.1, there were no HTTP requests sent to any domain containing the word "facebook".

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TWENTY-FIFTH: On September 14, 2022, as recorded in the diligence of that date, while previously logged into a Facebook account, upon visiting the website ***URL.1 and clicking on the Facebook icon to register as a user, the following data, among others, was transmitted to the domain facebook.com within an http POST request:

1. cookies datr, sb, c_user, fr, xs, presence.
2. parameter "accept-language."
3. parameter "user-agent:"
4. within the referer field, the following information:

"[...]"

TWENTY-SIXTH: As of May 5, 2021, as recorded in the diligence of September 15, 2022, FIL stated to the DPC that (...).

Its unofficial translation into Spanish:

(...).

It also stated:

[...]

Its unofficial translation into Spanish:

"[...]"

And that on September 10, 2021, FIL stated to the Irish Data Protection Authority (DPC):

(...).

Its unofficial translation into Spanish:

(...).

From its unofficial translation of the original in English below:

(...).

TWENTY-SEVENTH: On July 20, 2023, FACEBOOK was still publishing online the FISA requests it receives, as recorded in the diligence of that date.

TWENTY-EIGHTH: On February 9, 2024, the respondent has decided to eliminate the login or "federated login" of Facebook as an access alternative for registered users of the various websites owned by it, as explained in its writing of February 21, 2024.

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LEGAL GROUNDS

I

Competence

In accordance with and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this

organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the circumstances listed in Article 83.2 of the GDPR, this warning procedure is conducted in accordance with the provisions of Article 64.3 of the LOPDGDD.

II

Preliminary Issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the respondent collects and processes (through the Facebook service) the following personal data of individuals, among others: unique user identifiers, the IP address, as well as other data associated with the browser and the browsing itself, among other processing activities.

The respondent carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

For its part, Article 44 of the GDPR regulates the transfer of personal data to third countries.

III

Claims Made

In relation to the claims made, a response is provided according to the order presented by the respondent:

First.- Reiteration of statements

The respondent maintains and refers to the statements it has made during the preliminary investigation phase.

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a) The applicable U.S. regulations do not undermine the level of protection recognized for the data subject by the GDPR

The respondent argues that Executive Order 12333 and Presidential Policy Directive 28 regulate and limit the intelligence-gathering capabilities of U.S. government agencies outside the U.S. It is emphasized that there is no obligation to cooperate with the government and that EO 12333 does not provide any mechanism to compel U.S. importing companies to cooperate with the government.

Therefore, based on EO 12333, FREEPIK's providers in the U.S. are not obligated to cooperate with intelligence agencies to provide personal data of European users.

Regarding the Foreign Intelligence Surveillance Act (FISA), the respondent claims that it has a very specific objective scope.

First, the communications, content, and metadata that can be intercepted are only those materially related to activities linked to terrorism, hostile acts, weapons of mass destruction, clandestine espionage activities, or to national defense, or foreign affairs activities of the U.S.

Second, the information request under Section 702 must include some type of identifier or "selector," such as an email address, and cannot be indiscriminate.

Third, it is also necessary to justify the request with specific indications related to the person being investigated and the information expected to be obtained. A U.S. intelligence agency is required to provide objective and concrete indications, based on facts, to establish the likelihood that the target person possesses, has access to, or can communicate information related to foreign intelligence to foreign powers or foreign territories. Furthermore, intelligence agencies must also conduct an equally concrete and factually justified assessment regarding the nature of the information expected to be obtained with the required access.

Fourth, it is explained that the Schrems II ruling refers to the version of FISA at the time the adequacy decision on the Privacy Shield was issued, back in 2016, and does not address subsequent modifications. One of the most relevant changes is that it has restricted the ability to request, based on Section 702, information based on keywords to be found in the content of communications (which was referred to with requests about "about") so that information can only be requested based on identifiers

("selector") of the person sending or receiving the communication (which is referred to as "from" and/or "to" requests). In this regard, the respondent argues that, in a general analysis, neither the personal data processed by them, nor the categories of data subjects, nor the purposes of processing include elements that could be considered sensitive or of special category. And none of this is remotely linked to the objective and subjective scope of the referenced regulations.

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It understands that the conditions required in the aforementioned regulation significantly limit the scope of surveillance (in particular, the requirement—as a prerequisite—that intelligence agencies are obliged to justify, based on facts, that not only the targets but also the information sought through the access request falls within the objective scope of said regulation).

And that situations can be identified in which the exporting organization itself represents an element of interest for the Intelligence Agencies, due to its nature, members, or especially, due to its activity. It is alleged that the respondent party is not part of the Public Administration nor does it provide services for it. It is also not subject to any regulations related to the imposition of protective measures due to its activity (such as strategic activities for national security, activities of general interest, essential or particularly relevant activities, management or maintenance of critical or strategic infrastructures, etc.).

Therefore, it understands that the aforementioned regulation is not applicable to the personal data exported by the respondent party. And that the personal data subject to international transfer to the United States of America is objectively outside the scope of the Intelligence Agencies of this country. It concludes that the international transfers of personal data from the respondent party to the United States of America related to the Tool subject to request by the AEPD did not undermine the level of protection guaranteed by the GDPR to its holders, neither during the validity of the Privacy Shield nor after its annulment, since FACEBOOK imposed its transfer model based on Standard Contractual Clauses.

In this regard, this Agency wishes to point out that the respondent party does not deny that the Government of the United States may have access to the personal data of those who visit the website of the respondent party, but rather limits itself to considering that, taking into account the activity of its website, the Intelligence Agencies will not request information from its visitors.

Chapter V of the GDPR provides various instruments to ensure a level of protection substantially equivalent to that guaranteed in the European Union, in accordance with Article 44 of the Regulation, namely: adequacy decisions (Article 45) and appropriate safeguards (Article 46). In the absence of an equivalent level of protection, it establishes exceptions for specific situations (Article 49).

At least until July 10, 2023, FREEPIK and Meta Platforms, Inc. relied on the EU-US Adequacy Decision ("Privacy Shield") of 2016 to carry out the aforementioned international transfers of personal data.

Regarding FISA, the CJEU in its judgment of July 16, 2020, C-311/18, stated that such adequacy decision did not guarantee an adequate level of protection for individuals due to the relevant legislation of the United States and the implementation of official surveillance programs based, among others, on the

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Section 702 of FISA and E.O. 12333 in conjunction with PPD-28 and annulled the aforementioned adequacy decision.

This Agency understands that Meta Platforms, Inc. had the obligation to provide the authorities of the United States with personal data in accordance with Article 1881.a of the U.S. Code, should such a

request be made. The allegations of the respondent do not deny such an obligation but merely consider that the likelihood of such information being requested for visitors to the respondent's website was very unlikely.

Regarding the adoption of adequate safeguards, the CJEU has explicitly ruled that further transfers to companies covered by Article 50 of the U.S. Code § 1881a not only violate the relevant articles of Chapter V of the GDPR but also Articles 7 and 8 of the CFR, as well as the essence of Article 47 of the CFR (see C-362/14 ("Schrems I"), para. 95). Therefore, any further transfer violated the fundamental right to privacy, data protection, and the right to effective judicial protection and to an impartial judge. This Agency understands that Meta Platforms Inc. qualifies as an electronic service provider within the meaning of 50 U.S. Code § 1881(b)(4) and, as such, was subject to U.S. intelligence surveillance under 50 U.S. Code § 1881a ("FISA 702"). As evidenced by Facebook's own "Transparency Report" (see <https://transparency.facebook.com/government-data-requests/country/US>), Facebook is actively providing personal data to the U.S. government under 50 U.S. Code § 1881a.

As a consequence, the respondent could not guarantee adequate protection of the personal data of those visiting its website (including, among others, the claimant) that were transferred to Meta Platforms Inc. Therefore, the respondent had a legal obligation to refrain from transferring the data of those visiting its website (including, among others, the claimant) – or any other personal data – to Meta Platforms Inc.

Finally, this Agency considers that none of the requirements of Article 49 of the GDPR were met and, in particular, no consent was obtained in accordance with Article 49.1.a).

In light of all the above, this Agency understands that the international transfers of personal data from FREEPIK to Meta Platforms Inc. were not covered by any instrument of Article 45 and following of the GDPR, and therefore, this allegation is dismissed.

b) Non-existence of culpability

The respondent alleges that it cannot be legally reproached for culpability or lack of due diligence in its actions.

And cites:

- That on 16.07.2020, the CJEU made public the Judgment that invalidated the decision on the "EU-US Privacy Shield" in ruling C-311/18.

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- That on November 11, 2020, the European Data Protection Committee published two relevant documents for any company that was processing data: a) the guidelines on additional measures applicable to legitimize international transfers, and b) the document regarding the "essential European safeguards." In these documents, it is not stated, outright, nor much less, that all international transfers to the USA would be illegal, allowing for such transfers under conditions that FREEPIK complies with.

- That on November 11, 2020, almost immediately following the approach of the aforementioned Committee and Commission, this party was notified of the complaint.

- That on November 14, 2020, the European Commission published its new provisional models of "standard contractual clauses," which explicitly embrace the "risk-based approach" to assess the specific risk to data subjects arising from the specific international transfer.

- The complaint was filed on August 17, 2020, when the approach of the Committee or the Commission was not even known. It alleged that the transfers were illegal, when this was not even asserted by the referenced CJEU ruling.

It also claims that the degree of compliance should be assessed in a climate of generalized official uncertainty (subsequent to the CJEU ruling and the complaint). The National Court (Contentious-Administrative Chamber), in a ruling dated April 23, 2019, issued in procedure SAN 1801/2019, case number 88/2017, has declared that the European Data Protection Committee, as an organ of the Union, with legal personality, "will issue guidelines, recommendations, and best practices in order to promote the coherent application of this Regulation," in accordance with the literal wording

of Article 70.1.e) GDPR, and that, since the Committee is the body responsible for interpreting the scope of the provisions of the GDPR, in the event of significant and reasonable doubts arising regarding the application of one of the provisions of the GDPR, this would not allow for the imposition of a sanction.

In this regard, this Agency wishes to point out that all these issues have been evaluated and taken into account when deciding which corrective power mentioned in Article 58.2 of the GDPR should be applied in the present case, and therefore (among other reasons) it has been decided to follow a warning procedure.

However, none of this prevents the international transfers carried out in the context of the activity conducted by the responding party from not complying with the elements required by Article 44 of the GDPR, and it was the obligation of the responding party to verify that it did comply and to cease using the services in question if they did not meet the requirements.

Thus, this allegation is dismissed.

c) Actions Taken

Since the publication of the CJEU ruling, the responding party initiated an intensive review process of the legal instruments on which it bases its international data transfers to the United States, including those arising from the use of the Tool, carrying out the following actions:

- Communication with its external providers outside the EU and sending questionnaires to map the international data transfers, and

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gather information related to the circumstances highlighted by the Schrems II ruling.

- Communications with Facebook requesting documentation and collaboration.
- Contact with the complainant association NOYB, offering to engage in dialogue, inform about the possible damages caused, and explain its position. No response has been received from NOYB.
- Study, by the Company's DPO, of the U.S. regulations highlighted by the Schrems II ruling, and review of the international transfers made by the respondent party in light of the same.
- Request for a Legal Opinion from DLA Piper, a prestigious U.S. law firm specializing in said regulations regarding the DPO's preliminary conclusions, and in general about the application of the U.S. regulations in question and their specific implications for the respondent party.

In this regard, this Agency wishes to point out that it positively values the fact that the respondent party reviewed the instruments on which it based its international transfers to the United States and that all of this has been taken into account when deciding which corrective power mentioned in Article 58.2 of the GDPR should be applied in this case, and therefore (among other reasons) it has opted to follow a warning procedure. However, none of this prevents the conclusion that the international transfers carried out in the context of the activity performed by the respondent party did not comply with the elements required by Article 44 of the GDPR and that it was the obligation of the respondent party to verify that they did comply and to cease using the services in question if they did not meet the requirements.

Therefore, this allegation is dismissed.

d) Actions of the complainant

The complainant alleges that there are special circumstances regarding the complainant that cast doubt on the good faith that should govern their request, and that delegitimize their claims. They understand that data protection regulations could be used as a formalistic subterfuge to direct instrumentalized and constant attacks against Facebook, turning hundreds of companies that use its services (like the respondent party) into "hostages," in a possible interest (of the complainant) that has nothing to do with the protection of their personal data in the respondent party. They cite Article 7 of the Civil Code and the Supreme Court ruling of 20/05/2002 for this purpose.

They argue that their exercise occurs in a manner that ultimately proves abusive in relation to the intended purposes in exercising the aforementioned rights, being used in an abnormal way with the absence of a serious and legitimate purpose or interest and an excess in the exercise of their right.

The respondent party notes that:

- On 14.08.2020, when less than a month had passed since the aforementioned CJEU ruling, the complainant visited the website of FREEPIK COMPANY, S.L., in order to instrumentalize a subsequent complaint against FACEBOOK IRELAND, LTD, and

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FACEBOOK INC., including the Spanish company FREEPIK COMPANY, S.L.

- On 17.08.2020, (that is, three days after the visit to the website, and without having made a single request regarding her data to FREEPIK COMPANY, S.L.), a complaint was filed directly with the Spanish Data Protection Agency, alleging the following:
 - That she had visited the website of FREEPIK COMPANY, S.L. and confirmed that the website of FREEPIK COMPANY, S.L. had embedded the HTML code of Facebook services.
 - That more than a month had passed since the Judgment of the CJEU, and FREEPIK COMPANY, S.L. continues to carry out international transfers (sic) “without ensuring adequate protection of the personal data of the complainant,” who, according to NOYB, could be “one of the thousands of users.”
 - That “the transfer of the complainant's data to the United States is illegal.”
 - On the same date the complaint was filed (17.08.2020), NOYB publicly issued a promotional statement on its own website, announcing that it had filed 101 complaints against 101 companies. The text from NOYB provided a list of the accused, requested funding, and primarily targeted Facebook, while also offering companies (such as FREEPIK COMPANY, S.L.) assistance in complying with the regulations.

In this regard, this Agency wishes to point out that the actions of NOYB or the complainant are not the subject of this proceeding. It is simply a matter of determining whether the respondent party complied with the requirements of Article 44 of the GDPR. Therefore, this allegation is dismissed.

e) Role of FACEBOOK

The respondent party indicates that the Terms and Conditions that FACEBOOK offers to its clients on an “adhesion” basis describe FACEBOOK in two roles, relevant to this matter:

- a) A group of processing activities in which FACEBOOK, strictly interpreting the “Fashion Id” judgment, acknowledges its role as a joint controller, describing FACEBOOK Inc. as a data processor and the client (the respondent party) as a joint controller.
- b) A second group of processing activities, in which the client (the respondent party) is classified as the Data Controller, which “instructs” FACEBOOK to do this or that on its behalf as a data processor. It also classifies FACEBOOK Inc. as a “Sub-processor” for the “storage and more extensive processing of data.” (Appendix on EU data transfer ***URL.5).

The respondent party disagrees with this legal configuration and draws attention to the “Guidelines on targeting of social media users” from the EDPB, published in September 2020, and therefore dated after the version of the “Updated Processing Conditions” from FACEBOOK dated 31.08.2020.

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According to the interpretation of the responding party, based on the literal wording of section 5.2.1, pages 13 and 14 of the aforementioned “guidelines,” the treatments for which FACEBOOK IRELAND and FREEPIK are co-responsible would not only encompass those regulated in sections 2.a.iii and 2.a.v.i as FACEBOOK claims (treatments that include the Facebook login), but also those included in

sections 2.a.ii.1 and 2.a.ii.2.

The responding party explains that FACEBOOK distinguishes, in its own documentation and terminology, between “contact information data” and “event data.”

a. The contact information data, which are essentially identifiers.

b. The “event data,” which is “additional information about individuals and their actions on the websites (those of the responding party)” (visits, product purchases, or others determined by the client; the responding party did not generate any new data apart from those predetermined by FACEBOOK).

According to this same document, FACEBOOK (stipulation 5.a.i) self-configured as the Data Processor (and therefore the responding party was the Data Controller) in relation to its following stipulations:

2.a.i.1. The “contact information” for matching purposes. For example: the responding party could provide FACEBOOK with the list of email addresses of its “premium users” so that FACEBOOK would not impact them in the context of its advertising campaigns. FACEBOOK stated that it used an encryption system for these addresses that allowed it to cross-reference both databases (the FACEBOOK database and that of the responding party) without “reading” new personal data, different from those already being processed by it, and then deletes them.

2.a.ii.1 and 2: “event data” for measurement and analysis services (already preconfigured by FACEBOOK or created and customized by the client): report on the performance of statistical campaigns regarding individuals and the use of a website.

In the opinion of the responding party, it is evident that it did not “indicate anything” to FACEBOOK, which already had prefigured and available what the responding party could or could not do.

On the other hand, the responding party argues that the fact that a data processor only granted a “non-exclusive and non-transferable license” over the result of the service with access to data ordered or “indicated” by the responding party to FACEBOOK is poorly aligned, to say the least, with the theoretical position of both as Data Processor and Data Controller.

The responding party interprets -based on the literal wording of section 5.2.1, pages 13 and 14 of the mentioned Guidelines on targeting of social media users from the EDPB- that it was co-responsible along with FACEBOOK in relation to the data processing produced as a direct consequence of the selection by the responding party of the targeting criteria offered by FACEBOOK, and the subsequent advertising impacts on the users of that platform. And also regarding the reporting by

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part of FACEBOOK of aggregated data to the claimed party in relation to the result and performance of each advertising campaign.

Regarding FACEBOOK as Joint Data Controller along with the claimed party, according to this same document, the claimed party indicates that FACEBOOK self-configured (stipulation 5.a.ii) as a joint data controller, together with FREEPIK, in relation to:

2.a.iii.1: Transfer of “event data” to target advertising campaigns to individuals who interact with FREEPIK (“Retargeting”).

2.a.v.1: Transfer of “event data” to improve ad targeting and optimization of advertising campaign deliveries, correlation between that event data and individuals using FACEBOOK products, improve the effectiveness of ad input models, determine the relevance of ads for individuals.

The claimed party alleges that it did not indicate to FACEBOOK to capture any data: the platform captured them in any case: FACEBOOK simply offered the advertising exploitation of “audiences” based on all that personal information of its users, duly classified and profiled.

In this regard, this Agency wishes to point out that the claimed party, as the owner of the website, made the decision to implement Facebook Business Tools on its website ***URL.1. In particular, it inserted a JavaScript code, provided by Meta Platforms, Inc, into the source code of its website, so this JavaScript code was executed in the browser of those visiting the website (among others, the claiming party) during their visit to it.

As a result, the claimed party decided on the purposes and means of processing data related to the tool, so it must be considered a data controller according to Article 4.7 of the GDPR.

Regarding the role of Meta Platforms, Inc, despite extensive investigative actions, this Agency has not found sufficient evidence to qualify Meta Platforms, Inc as a data controller. Therefore, this allegation is dismissed.

Second.- Implementation of more appropriate mechanisms at each moment

The claimed party alleges that it has implemented the legal mechanisms for transfer and the most appropriate measures available at each moment to adequately protect the personal data of its users. And it refers to its writings submitted during the previous investigative actions, in which the implementation and use of the SCCs then in effect -2020-, the new set of SCCs approved by the European Commission in 2021, the deactivation of the Facebook pixel in May 2021, and the recently approved DPF framework were communicated.

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In this regard, this Agency reiterates that Chapter V of the GDPR provides various instruments to ensure a level of protection substantially equivalent to that guaranteed in the European Union, in accordance with Article 44 of the Regulation, namely: adequacy decisions (Article 45) and appropriate safeguards (Article 46). In the absence of an equivalent level of protection, it establishes exceptions for specific situations (Article 49).

At least until July 10, 2023, the respondent and Meta Platforms, Inc. relied on the EU-US Adequacy Decision ("Privacy Shield") of 2016 to carry out the aforementioned international transfers of personal data.

However, the CJEU in its judgment of July 16, 2020, C-311/18, declared that such adequacy decision did not guarantee an adequate level of protection for individuals due to the relevant legislation of the United States and the implementation of official surveillance programs based, among others, on Section 702 of FISA and E.O.12333 in conjunction with PPD-28, and annulled the aforementioned adequacy decision.

This Agency understands that Meta Platforms, Inc. had the obligation to provide personal data to the authorities of the United States in accordance with Article 1881.a of the U.S. Code.

For its part, the respondent could not base the data transfer on the standard contractual clauses for data protection provided in Article 46(2)(c) and (d) of the GDPR if the third country of destination did not guarantee an adequate protection, according to EU legislation, of the personal data transferred under those clauses (see paragraphs 134 and 135 of the Judgment). The CJEU has explicitly ruled that subsequent transfers to companies covered by Article 50 of the U.S. Code § 1881a not only violate the relevant articles of Chapter V of the GDPR but also Articles 7 and 8 of the CFR, as well as the essence of Article 47 of the CFR (see C-362/14 ("Schrems I"), paragraph 95). Therefore, any subsequent transfer violates the fundamental right to privacy, data protection, and the right to effective judicial protection and to an impartial judge.

Meta Platforms Inc. qualifies as an electronic service provider within the meaning of 50 U.S. Code § 1881(b)(4) and as such is subject to U.S. intelligence surveillance under 50 U.S. Code § 1881a ("FISA 702").

As evidenced by Facebook's own "Transparency Report" (see

<https://transparency.facebook.com/government-data-requests/country/US>), Facebook is actively providing personal data to the U.S. government under 50 U.S. Code § 1881a.

As a consequence, the respondent could not guarantee adequate protection of the personal data of those visiting its website (including, among others, the claimant) that were transferred to Meta Platforms Inc. Therefore, the respondent had a legal obligation to refrain from transferring the data of those visiting its website (including, among others, the claimant) - or any other personal data - to Meta Platforms Inc.

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Finally, this Agency considers that none of the requirements of Article 49 of the GDPR are met, and in particular, no consent has been obtained in accordance with Article 49.1.a).

Furthermore, this Agency wishes to point out that, even assuming that new regulatory instruments had been approved that would mean there was no infringement by the respondent party from the date of their approval, this does not prevent the fact that it has been verified that the respondent party had previously infringed the provisions of Article 44 of the GDPR.

For all the above reasons, this allegation is dismissed.

Third.- Non-existence of infringement

The respondent party alleges that, since the approval in the United States of America and in the European Union of the regulatory instruments to be referred to below, and their application to Meta Platforms Ireland Limited (formerly Facebook Ireland) and Meta Platforms Inc (formerly Facebook Platforms Inc), there is no infringement nor any need for the Agency to impose further regularization measures.

In this regard, this Agency wishes to point out that, even assuming that new regulatory instruments had been approved that would mean there was no infringement by the respondent party from the date of their approval, this does not prevent the fact that it has been verified that the respondent party had previously infringed the provisions of Article 44 of the GDPR. Therefore, this allegation is dismissed.

Fourth: Entry into force of new relevant regulations on both sides of the Atlantic with the approval of the “Trans-Atlantic Data Privacy Framework”

4.1.- October 2022

The respondent party alleges that, from the U.S. side, and as a prerequisite for the approval and implementation of the “Trans-Atlantic Data Privacy Framework” (or “DPF” in English), the Presidential Executive Order 14.086 On Enhancing Safeguards For United States Signals Intelligence Activities was published in the U.S. in October, under which the following are established:

- A two-tier complaint review system:

The respondent party explains that, in the first instance, individuals from “qualified states” (among which will be the EU member states) can file a complaint with their own public authorities.

And that such a complaint is forwarded to the CLPO (Civil Liberties Protection Officer) who assesses whether a “covered infringement” (an infringement arising from “signals intelligence activities”) of the U.S. Constitution, FISA, EO 12.333, this new EO, or any new regulation implemented for this purpose has occurred.

And if the CLPO determines the existence of a covered infringement, it identifies the appropriate remedy, communicating it to the Assistant Attorney General for National Security.

After its review, the CLPO confirms in writing to the complainant whether (a) no covered infringement has been identified or (b) the CLPO has issued a determination requiring its appropriate remedy.

The respondent party indicates that, in the second instance, the complainant can request a review of the CLPO's decision before a newly established administrative court, the DPRC (Data Protection Review Court).

In this court, a three-member panel and a Special Advocate are appointed, who review the file prepared by the CLPO, along with the background provided by the complainant, the Special Advocate, or the oversight authorities.

They may also order additional proceedings from the CLPO. If the Court concludes that a covered infringement exists, it may order its appropriate remedy, which is binding on the oversight authorities.

At the end of the procedure, the court confirms in writing to the complainant whether (a) no covered infringement has been identified or (b) the court has issued a determination requiring its appropriate remedy.

- A new system of safeguards focused on the principles of purpose limitation and proportionality.

Regarding proportionality, the respondent party explains that EO 14086 limits U.S. “signals” intelligence activities in a binding manner for the Intelligence Agencies.

To this end, it establishes a list of twelve "legitimate objectives" for collection and four "prohibited objectives."

And that the collection of data within the U.S. (i.e., all data transferred to the U.S.) must have specific objectives. The collection of data outside the U.S. must prioritize selective collection, and mass collection is limited to situations where a validated target cannot reasonably be obtained through selective collection, and only to the extent and in a manner that is proportional to the validated intelligence purpose.

- Specific requirements for U.S. intelligence authorities to update their policies and procedures.

The respondent party points out that these requirements of EO 14086 have been fulfilled through the regulation on the Data Protection Review Court published by the U.S. Attorney General (the "AG Regulation") and by the new "Procedures" of the agencies integrated into the "Intelligence Community."

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4.2.- July 2023

The responding party alleges that on July 10, 2023, the framework agreement was definitively approved by the adequacy decision of the European Commission, which came into effect on the same date of publication, under the aforementioned designation of "EU-US Data Privacy Framework" or "DPF."

It further states that the community adoption of the Adequacy Decision of July 10, 2023, made effective the designation by the Attorney General of the EU and the three EEA/EFTA member states as 'Qualified States' for the purposes of the application of the redress mechanism.

It adds that a system equivalent to the pre-existing one in the Privacy Shield was established, to which the new guarantees outlined in the previous point were added.

The responding party explains that from that date:

- The transfer of personal data to the United States, whether to U.S. service providers or to a subsidiary of its corporate group, is automatically understood to be validated by the ratified adequacy decision if they are certified under this new DPF framework;
- Alternatively, all entities that were validly certified under the previous system (Privacy Shield) are considered provisionally certified for a maximum period of 3 months from the entry into force (until October 10, 2023), at the end of which they must have updated their privacy policies, without the need to undergo a new certification process;
- The European Commission, in its adequacy decision and specifically in its Recital 7, states that "it has carefully analyzed U.S. legislation and practice, including Executive Order 14.086 and the AG Regulation. Based on the findings set out in Recitals 9 to 200 of the adequacy decision, the Commission concludes that the United States ensures an adequate level of protection for personal data transferred under the DPF by a controller or processor based in the European Union to certified organizations in the United States."

In the opinion of the responding party, the clarity of the European Commission in the aforementioned adequacy decision, in which it analyzes U.S. law in light of essential European principles and guarantees, leaves little doubt about the legality of international transfers made between companies and organizations in the EU and those located in the United States of America.

In this regard, this Agency wishes to point out that the facts claimed that gave rise to this procedure occurred on August 14, 2020.

On January 22, 2021, this Agency was able to verify that while logged into Facebook with a test user and after visiting the page ***URL.1, this visit is recorded in the "Off-Facebook Activity" section associated with the logged-in user.

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On April 15, 2021, this Agency verified that without being logged into Facebook and after visiting the page ***URL.1, accepting its cookies, there are http GET and POST requests sent to the domain facebook.com with, among other information, the following:

1. The value of the fbp cookie sent as a parameter within the URL.
2. Parameters sw, sh.
3. Field "accept-language"
4. Field "user-agent"
5. Parameter dl with the value ***URL.1

And that solely by performing the login operation on the Facebook account at facebook.com using a test user, cookies are installed in the browser, including c_user, fr.

Also, on April 15, 2021, it was verified that while logged into Facebook with a test user and after visiting the page ***URL.1, there are http GET and POST requests sent to the domain facebook.com with, among other information, the following:

1. Cookies c_user and fr among others. The value of the fbp cookie sent as a parameter within the URL.
2. Parameters sw, sh.
3. Field "accept-language"
4. Field "user-agent"
5. Parameter dl with the value https://***URL.1

On January 21 and 22, 2021, the content of the URL ***URL.5 was as follows:

"Appendix on EU Data Transfer from Facebook

This Appendix on EU Data Transfer ("Data Transfer Appendix") applies to the extent that FIL acts as a Data Processor of the EU in accordance with the applicable product terms, such as the Facebook Business Tools Terms or the Custom Audiences Terms from a Customer List ("Applicable Product Terms"), and the transfers of EU Data originating in the UK, the EU, the EEA, or Switzerland are made to its subprocessors Facebook, Inc.

1. Given the circumstances, you instruct FIL to transfer EU Data to Facebook, Inc. in the United States for storage and further Processing. The Clauses apply between you and Facebook, Inc. in relation to the transfers of EU Data originating in the UK, the European Union, the European Economic Area, or Switzerland to Facebook, Inc., unless otherwise permitted in the GDPR.

a. Regarding the Clauses, you are the "data exporter" and Facebook, Inc. is the "data importer," according to the definition of these terms in said Clauses.

[...]

8. In this Data Transfer Appendix:

a. "Clauses" refers to the standard data protection clauses for the transfer of personal data to processors established in third countries that do not ensure an adequate level of data protection, as described in Article 46 of the GDPR and in accordance with the

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Approval of Decision 2010/87/EU of the European Commission of February 5, 2010 (but excluding optional illustrative clauses).

[...]"

On January 21 and 22, 2021, the content of the URL ***URL.6 was as follows:

"Data Processing Conditions

You agree that your use of certain Facebook Products may involve the sending of Personal Information to Facebook. These Data Processing Conditions apply to the extent that it is stipulated that we must process Personal Information as a Processor under the conditions of applicable products

("Applicable Product Conditions," and any Facebook products to which these apply, "Applicable Products"), such as the Conditions of Facebook's business tools and the Conditions of Custom Audiences from a customer list.

[...]

10. You agree that Facebook may subcontract its obligations under these Data Processing Conditions to a subprocessor that may be based in the United States, the European Union (EU), the European Economic Area (EEA), or other countries, provided that it is through a written agreement with such subprocessor imposing obligations that are at least as strict as those imposed on Facebook under these Data Processing Conditions. If the subprocessor fails to comply with these obligations, Facebook will assume full responsibility to you for the performance of the subprocessor's obligations.

[...]

12. To the extent that the GDPR applies to the Processing you carry out as Controller under these Data Processing Conditions, the Appendix on data transfer, which is part of these Conditions and is incorporated herein by this reference, will apply to the transfers of Personal Information originating in the United Kingdom, the EU, the EEA, or Switzerland."

On September 10, 2021, FIL submitted the following information and statements to the Irish Data Protection Authority (DPC):

On May 26, 2022, this Agency verified that the cookies loaded in the browser when logging into Facebook with a test user are: presence, xs, c_user, fr, sb, datr, all installed by the domain facebook.com.

On May 16, 2022, META PLATFORMS INC (formerly FACEBOOK INC.) submitted the following information and statements to the Austrian Data Protection Authority (DSB), from its unofficial translation of the original in German:

(...).

On September 14, 2022, it was verified that while previously logged into a Facebook account, when visiting the website ***URL.1 and clicking on the Facebook icon to register as a user, the following data, among others, were transmitted to the domain facebook.com within an HTTP POST request:

1. cookies datr, sb, c_user, fr, xs, presence.
2. parameter "accept-language."
3. parameter "user-agent:"
4. within the referer field, the following information:

[...]

On May 5, 2021, FIL stated to the Irish Data Protection Authority (DPC) the following (unofficial translation, the original in English):

(...).

Therefore, in the present procedure, it is established that between August 2020 and September 2022, the respondent had the Facebook Login service installed on its websites, which collected personal data from visitors, which were transferred to FB Inc, in the United States.

The "new regulatory instruments" referred to by the respondent are from October 2022 and July 2023. Even assuming that these would mean that there was no infringement by the respondent from their approval, this does not prevent the fact that it has been established that the respondent had previously infringed the provisions of Article 44 of the GDPR. Therefore, this allegation is dismissed.

Fifth. - Application of the DPF to Facebook

Regarding the relationship of Freepik with Meta Platforms Ireland Limited (formerly Facebook Ireland) and Meta Platforms Inc (formerly Facebook Platforms Inc), the respondent outlines the available documentation that proves the effective application of the DPF to Facebook, which includes the applicable adherence contracts (updated in accordance with the conditions of the DPF described above):

- The accreditation of Meta Platforms Inc. in the DPF.
- The privacy policies of Facebook, which have been updated in September 2023 in accordance with the aforementioned provisions.

In this regard, this Agency reiterates what was previously stated.

That is to say, in the present procedure, it is established that between August 2020 and September

2022, the respondent had the Facebook Login service installed on its websites, which collected personal data from visitors, which were transferred to FB Inc, in the United States.

The “new regulatory instruments” referred to by the respondent are from October 2022 and July 2023. Even assuming that these would mean that there was no infringement by the respondent from their approval, this does not prevent the fact that it has been established that the respondent had previously infringed the provisions of Article 44 of the GDPR.

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infringed the provisions of Article 44 of the GDPR. Therefore, this allegation is dismissed.

Written communication of February 21, 2024

In its communication dated February 21, 2024, the respondent informs this Agency that it has decided to remove the “federated login” option via Facebook as an access alternative for registered users of the various Freepik websites. This removal became effective on February 9, 2024.

In this regard, this Agency wishes to point out that in light of this information, it considers it lawful not to order the respondent to adopt the measures contemplated in Article 58.2 d) of the GDPR.

IV

Transfers of personal data to third countries

Personal data

Article 4 “Definitions” of the GDPR defines personal data as follows:

“For the purposes of this Regulation, the following definitions shall apply:

1) ‘personal data’: any information relating to an identified or identifiable natural person (‘data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person; (...)”

In this case, the respondent – as the owner of the website – has implemented Facebook Business tools on its website ***URL.1. As a result of this implementation, at least the following information from the devices of visitors to the website (including that of the complainant) has been transmitted to the servers of Meta Platforms, Inc:

- IP address;
- User agent;
- Mobile operating system and browser;
- Information about the host server (the webpage that has the login functionality);
- Date and time of the visit to the website;
- Language of the content (the language of the audience targeted by the website);
- Location (usually the country code referred to in the language field in the HTTP header);
- HTTP referrer (URL of the page where the person is located);
- Display port data (the screen resolution of the device used);
- User identifier;
- Cached access tokens;
- Standard HTTP request headers that were not yet on the list;
- Values stored in FB cookies.

As a result of the implementation of Facebook Business Tools on ***URL.1, cookies were installed on the devices of visitors to the website (including that of the complainant), which contain a randomly generated unique value. This makes it possible to personalize the device of those who visited the website (including the complainant) and record the browsing activity of these visitors (among whom was the complainant) in order to show them appropriate personalized advertising.

In any case, at least Meta Ireland had the option to link the data it received as a result of the implementation of Facebook Business Tools on ***URL.1 with the Facebook account of the visitors to the website (including that of the complainant).

For example, the terms of use of Facebook Business Tools clearly indicate that Facebook Business Tools are used to exchange information with Facebook.

It is not necessary for the respondent to establish a personal identification by itself, that is, to have all the information necessary for identification (see the judgments of the Court of Justice of the European

Union of July 20, 2008, December 2017, C-434/16, paragraph 31, and of October 19, 2016, C-582/14, paragraph 43).

This is in line with the Fashion ID ruling. The CJEU assumed that the inclusion of a "Like" button on a webpage – regardless of whether the button has been clicked or not – triggers the processing of personal data (judgment of July 29, 2018, C-40/17, paragraph 80). From the perspective of the CJEU, it is not necessary for the owner of a particular webpage to be able to establish a personal identifier. The rulings of the CJEU can be applied to the present case, given that according to the Terms of Use, the "Like" buttons and Facebook Login and Facebook Pixel are among the Facebook Business Tools. Therefore, these are personal data, according to Article 4.1 of the GDPR.

Distribution of roles

As explained, the respondent, as the owner of the website, made the decision to implement Facebook Business Tools on its website ***URL.1. In particular, it inserted a JavaScript code, provided by Meta Platforms, Inc, into the source code of its webpage, so this JavaScript code

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was executed in the browser of those visiting the website (among others, the complaining party) during their visit to it.

In its response dated December 11, 2020, the responding party stated that it had implemented Facebook Pixel and Facebook Login on ***URL.1.

As a result, the responding party decided on the purposes and means of processing data related to the tool, so the responding party must be considered a data controller in accordance with Article 4.7 of the GDPR.

Regarding the role of Meta Platforms, Inc., despite extensive investigative actions, this Agency has not found sufficient evidence to classify Meta Platforms, Inc. as a data controller.

Therefore, this Agency assumes that at least since August 21, 2020, Meta Platforms, Inc. acted as a data processor on behalf of the responding party, in accordance with Article 28, paragraph 2, of the GDPR.

Scope of application of Chapter V of the GDPR

The responding party is established in Spain and is the owner of the website ***URL.1, which falls within the scope of the GDPR. Furthermore, the responding party has proactively shared the personal data of those visiting its website (among others, of the complaining party) with Meta Platforms, Inc. by implementing Facebook Business Tools on its website ***URL.1.

Meta Platforms, Inc. is located in the United States. It has not been possible to determine whether the personal data of those visiting the website (among others, of the complaining party) was transmitted directly to Meta Platforms Inc., or only after being processed by Meta Ireland.

According to Article 28.1 of the GDPR, the responding party is obliged to cooperate only with processors that provide sufficient guarantees that the data processing is carried out in accordance with the requirements of the GDPR.

In this case, the responding party accepted the terms and conditions of the Facebook Ireland Business Tools and, in accordance with Article 28.2 of the GDPR, agreed that Meta Ireland could use Meta Platforms, among others, as a sub-processor.

According to Guidelines 05/2021 on the interaction between the application of Article 3 and the provisions on international transfers in accordance with Chapter V of the GDPR from the EDPB, mere processing or the involvement of a legal entity from the U.S. already amounts to the existence of a transfer in the sense of Chapter V of the GDPR. In this case, the responding party did not demonstrate whether it transferred data directly to the U.S.—although proactive responsibility is required for each processing under Article 5.2 of the GDPR.

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However, this is not relevant since the responding party was the data controller throughout the entire processing chain and—given that the data ends up being processed by a company in the U.S. and in the U.S.—the responding party is therefore obliged to comply with Article 44 of the GDPR. In particular, the responding party's reference to Example 1 of Guidelines 05/2021 is incorrect as there is no direct collection in this case but rather a processing induced and made possible by the responding party (the data controller) by integrating Facebook services (as previously described in reference to the Fashion ID ruling).

In this case, the responding party accepted the conditions of Meta Ireland's Facebook Business Tools for data processing and, in accordance with Article 28.2 of the GDPR, agreed that Meta Ireland could, among others, use Meta Platforms, Inc. as a sub-processor.

Therefore, it is necessary to verify whether the transfers of personal data to the United States took place in accordance with the provisions of Chapter V of the GDPR.

Article 44 "Transfers of personal data to third countries or international organizations" of the GDPR states:

"Transfers of personal data that are being processed or are to be processed after their transfer to a third country or international organization may only take place if, subject to the other provisions of this Regulation, the controller and the processor comply with the conditions laid down in this chapter, including those relating to further transfers of personal data from the third country or international organization to another third country or another international organization. All provisions of this chapter shall apply in order to ensure that the level of protection of natural persons guaranteed by this Regulation is not undermined."

That is to say, Chapter V of the GDPR provides various instruments to ensure a level of protection substantially equivalent to that guaranteed in the European Union, in accordance with Article 44 of the Regulation, namely:

- adequacy decisions (Article 45);
- appropriate safeguards (Article 46);

In the absence of an equivalent level of protection, it establishes exceptions for specific situations (Article 49).

i) Adequacy decision (Article 45 of the GDPR)

At least until July 10, 2023, the responding party and Meta Platforms, Inc. relied on the EU-U.S. Adequacy Decision ("Privacy Shield") of 2016 to carry out the aforementioned international transfers of personal data.

However, the CJEU in its ruling of July 16, 2020, C-311/18, declared that such an adequacy decision did not guarantee an adequate level of protection for the

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natural persons due to the relevant regulations of the United States and the implementation of official surveillance programs based, among others, on Section 702 of FISA and E.O. 12333 in conjunction with PPD-28, and annulled the aforementioned adequacy decision.

This Agency understands that Meta Platforms, Inc must be classified as a provider of electronic communication services within the meaning of U.S. Code 50 § 1881(b)(4), and therefore was subject to surveillance by U.S. intelligence authorities, in accordance with U.S. Code 50 § 1881.a ("FISA 702").

Therefore, Meta Platforms, Inc had the obligation to provide U.S. authorities with personal data in accordance with Article 1881.a of U.S. Code.

ii) Adequate safeguards

The respondent could not base the data transfer on the standard contractual clauses for data

protection provided for in Article 46(2)(c) and (d) of the GDPR if the third country of destination did not guarantee adequate protection, under EU law, of the personal data transferred under those clauses (see paragraphs 134 and 135 of the Judgment). The CJEU has explicitly ruled that further transfers to companies covered by Article 50 of the U.S. Code § 1881a not only violate the relevant articles of Chapter V of the GDPR but also Articles 7 and 8 of the CFR, as well as the essence of Article 47 of the CFR (see C-362/14 ("Schrems I"), paragraph 95). Therefore, any further transfer violates the fundamental right to privacy, data protection, and the right to effective judicial protection and to an impartial judge.

Meta Platforms Inc. is classified as a provider of electronic services within the meaning of 50 U.S. Code § 1881(b)(4) and as such is subject to U.S. intelligence surveillance under 50 U.S. Code § 1881a ("FISA 702").

As evidenced by Facebook's own "Transparency Report" (see <https://transparency.facebook.com/government-data-requests/country/US>), Facebook is actively providing personal data to the U.S. government under 50 U.S. Code § 1881a.

As a consequence, the respondent could not guarantee adequate protection of the personal data of those visiting its website (including, among others, the claimant) that were transferred to Meta Platforms Inc. Therefore, the respondent had a legal obligation to refrain from transferring the data of those visiting its website (including, among others, the claimant) - or any other personal data - to Meta Platforms Inc.

iii) Exceptions for certain cases

This Agency considers that no requirements of Article 49 of the GDPR are met and, in particular, no consent has been obtained in accordance with Article 49.1.a).

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For all the above reasons, this Agency understands that the international transfers of personal data from the respondent to Meta Platforms Inc. were not covered by any instrument of Article 45 and following of the GDPR.

Therefore, in accordance with the evidence available at this time in the resolution of the warning procedure, it is considered that the known facts constitute an infringement attributable to the respondent for violation of Article 44 of the GDPR.

V

Classification and qualification of the infringement of Article 44 of the GDPR

Article 83.5.c) of the GDPR classifies as an infringement the violation of the following provisions:

c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;

(...)

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year limitation period:

(...)

l) The international transfer of personal data to a recipient located in a third country or to an international organization, when the guarantees, requirements, or exceptions established in Articles 44 to 49 of Regulation (EU) 2016/679 are not met. (...)"

VI

Warning

Article 64 of the LOPDGDD, which regulates the "Form of initiation of the procedure and duration," in its third section states that:

"3. When appropriate, considering the nature of the facts and duly taking into account the criteria

established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the data controller or processor, may issue a warning, as well as order the data controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified time frame.

The procedure will have a maximum duration of six months from the date of the initiation agreement. After that period, it will expire, and consequently, the file of actions will occur.

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The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.” In the present case, considering the circumstances listed in Article 83.2 of the GDPR, it is deemed lawful to issue a warning to the party being complained against.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to FREEPIK COMPANY S.L., with NIF B93183366, for a violation of Article 44 of the GDPR, classified under Article 83.4 of the GDPR.

SECOND: TO NOTIFY this resolution to FREEPIK COMPANY S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
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